

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO. TBD		PAGE 1 OF 89	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO. TBD		3. AWARD/EFFECTIVE DATE TBD		4. ORDER NO. TBD		5. SOLICITATION NUMBER 36C10B26Q0331	
						6. SOLICITATION ISSUE DATE 04-28-2026	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Angela Key, Contract Specialist				b. TELEPHONE NO. (No Collect Calls) 848-377-5202	
						8. OFFER DUE DATE/LOCAL TIME 04-29-2026 11:00am EST	
9. ISSUED BY Department of Veterans Affairs Office of Procurement, Acquisition and Logistics (OPAL) Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724				10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 532420 ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) SIZE STANDARD: \$40 Million			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO See Schedule of Supplies/Services				16. ADMINISTERED BY Department of Veterans Affairs OPAL Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724			
17a. CONTRACTOR/OFFEROR Cynergy Professional Systems, LLC. 23187 La Cadena Drive Suite 102 Laguna Hills, CA 92653		18a. PAYMENT WILL BE MADE BY Department of Veterans Affairs Technology Acquisition Center Financial Services Center PO Box 149971 Austin TX 78714-8971 See website at: http://www.fsc.va.gov/einvoice.asp					
TELEPHONE NO. _____		UEI: _____		EFT: _____			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES See CONTINUATION Page		21. QUANTITY		22. UNIT	
				23. UNIT PRICE		24. AMOUNT	
		Multifunction Device Lease and Support Services Atlanta VA Veterans Affairs POCs: CO: John Vardouniotis, ioannis.vardouniotis@va.gov CS: Angela Key, Angela.Key@va.gov This solicitation is being issue on a sole source basis to Cynergy Professional Systems, LLC via the Veterans First Contracting Program. This effort shall be firm-fixed price. See Continuation Pages (Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page				26. TOTAL AWARD AMOUNT (For Govt. Use Only)			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA				☒ ARE ☐ ARE NOT ATTACHED.			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED			
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) John Vardouniotis Contracting Officer		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: Cynergy Professional Systems, LLC.
23187 La Cadena Drive Suite 102
Laguna Hilla, CA 92653

b. GOVERNMENT: Contracting Officer 36C10B
Department of Veterans Affairs
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

- a. Quarterly ☐
- b. Semi-Annually ☐
- c. Other ☒ [X - In accordance with Section B.4 Schedule of Supplies/Services and acceptance of deliverables]

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VA Acquisition Regulation (VAAR) Clause 852.232-72 Electronic Submission of Payment Requests.

See website at: <http://www.fsc.va.gov/einvoice.asp>

5. ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 GOVERNING LAW

Federal law and regulations, including the Federal Acquisition Regulations (FAR), shall govern this Contract/Order. Commercial license agreements may be made a part of this Contract/Order but only if both parties expressly make them an addendum hereto, as permitted by FAR 12.212. If the commercial license agreement is not made an addendum, it shall not apply, govern, be a part of or have any effect whatsoever on the Contract/Order; this includes, but is not limited to, any agreement embedded in the computer software (clickwrap), any agreement that is otherwise delivered with or provided to the Government with the commercial computer software or documentation (shrinkwrap), or any other license agreement otherwise referred to in any document. If a commercial license agreement is made an addendum, only those provisions addressing data rights regarding the Government's use, duplication and disclosure of data (e.g., restricted computer software) are included and made a part of this Contract/Order, and only to the extent that those provisions are not duplicative or inconsistent with Federal law, Federal regulation, the incorporated FAR clauses and the provisions of this Contract/Order; those provisions in the commercial license agreement that do not address data rights regarding the Government's use, duplication and disclosure of data shall not be included or made a part of the Contract/Order. Federal law and regulation including, without limitation, the Contract Disputes Act (41 U.S.C. § 7101 et seq.), the Anti-Deficiency Act (31 U.S.C. § 1341 et seq.), the Competition in Contracting Act (41 U.S.C. § 3301 et seq.), the Prompt Payment Act (31 U.S.C. § 3901 et seq.), Contracts for Data Processing or Maintenance (38 USC § 5725), and FAR clauses 52.212-4, 52.227-14, 52.227-19 shall supersede, control, and render ineffective any inconsistent, conflicting, or duplicative provision in any commercial license agreement. In the event of conflict between this clause and any provision in the Contract/Order or the commercial license agreement or elsewhere, the terms of this clause shall prevail. The Contractor shall deliver to the Government all data first produced under this Contract/Order with unlimited rights as defined by FAR 52.227-14. Claims of patent or copyright infringement brought against the Government as a party shall be defended by the U.S. Department of Justice (DOJ) in accordance with 28 U.S.C. § 516; at the discretion of DOJ, the Contractor may be allowed reasonable participation in the defense of the litigation. Any additional changes to the Contract/Order must be made by modification (Standard Form 30) and shall only be made by a warranted Contracting Officer. Nothing in this Contract/Order or any commercial license agreement shall be construed as a waiver of sovereign immunity.

B.3 SOFTWARE LICENSE, MAINTENANCE AND TECHNICAL SUPPORT

(1) Definitions.

- (a) Licensee. The term "licensee" shall mean the U.S. Department of Veterans Affairs ("VA") and is synonymous with "Government."
- (b) Licensor. The term "licensor" shall mean the contractor having the necessary license or ownership rights to deliver license, software maintenance and support of the computer software being acquired. The term "contractor" is the party identified in Block 17a on the SF1449. If the contractor is a reseller and not the Licensor, the contractor remains responsible for performance under this order.
- (c) Software. The term "software" shall mean the licensed computer software product(s) cited in the Schedule of Supplies/Services.
- (d) Maintenance. The term "maintenance" is the process of enhancing and optimizing software, as well as remedying defects. It shall include all new fixes, patches, releases, updates, versions and upgrades, as further defined below.
- (e) Technical Support. The term "technical support" refers to the range of services providing assistance for the software via the telephone, email, a website or otherwise.
- (f) Release or Update. The term "release" or "update" are terms that refer to a revision of software that contains defect corrections, minor enhancements or improvements of the software's functionality. This is usually designated by a change in the number to the right of the decimal point (e.g., from Version 5.3 to 5.4). An example of an update is the addition of new hardware.
- (g) Version or Upgrade. The term "version" or "upgrade" are terms that refer to a revision of software that contains new or improved functionality. This is usually designated by a change in the number to the left of the decimal point (e.g., from Version 5.4 to 6).

(2) Software License

- (a) Unless otherwise stated in the Schedule of Supplies/Services, the Performance Work Statement or Product Description, the software license provided to the Government is a perpetual, nonexclusive license to use the software
- (b) The Government may use the software in a networked environment.
- (c) Any dispute regarding the license grant or usage limitations shall be resolved in accordance with the Disputes Clause incorporated in FAR 52.212-4(d).
- (d) All limitations of software usage are expressly stated in the Schedule of Supplies/Services and the Performance Work Statement/Product Description.

(3) Software Maintenance and Technical Support

- (a) If the Government desires to continue software maintenance and support beyond the period of performance identified in this contract or order, the Government will issue a separate contract or order for maintenance and support. Conversely, if a contract or order for continuing software maintenance and technical support is not received the contractor is neither authorized nor permitted to renew any of the previously furnished services.
- (b) The contractor shall provide software support services, which includes periodic updates, enhancements and corrections to the software, and reasonable

technical support, all of which are customarily provided by the contractor to its commercial customers so as to cause the software to perform according to its specifications, documentation or demonstrated claims.

- (c) Any telephone support provided by contractor shall be at no additional cost.
- (d) The contractor shall provide all maintenance services in a timely manner in accordance with the contractor's customary practice or as defined in the Performance Work Statement/Product Description. However, prolonged delay (exceeding 2 business days) in resolving software problems will be noted in the Government's various past performance records on the contractor (e.g., www.ppirs.gov).
- (e) If the Government allows the maintenance and support to lapse and subsequently wishes to reinstate it, any reinstatement fee charged shall not exceed the amounts that would have been charged if the Government had not allowed the subscription to lapse.
- (4) Disabling Software Code. The Government requires delivery of computer software that does not contain any code that will, upon the occurrence or the nonoccurrence of any event, disable the software. Such code includes but is not limited to a computer virus, restrictive key, node lock, time-out or other function, whether implemented by electronic, mechanical, or other means, which limits or hinders the use or access to any computer software based on residency on a specific hardware configuration, frequency of duration of use, or other limiting criteria. If any such disabling code is present, the contractor agrees to indemnify the Government for all damages suffered as a result of a disabling caused by such code, and the contractor agrees to remove such code upon the Government's request at no extra cost to the Government. Inability of the contractor to remove the disabling software code will be considered an inexcusable delay and a material breach of contract, and the Government may exercise its right to terminate for cause. In addition, the Government is permitted to remove the code as it deems appropriate and charge the Contractor for consideration for the time and effort expended in removing the code.
- (5) Manuals and Publications. Upon Government request, the contractor shall furnish the most current version of the user manual and publications for all products/services provided under this contract or order at no cost.

B.4 SCHEDULE OF SUPPLIES/SERVICES

Any resulting contract will be awarded on a firm-fixed-price basis as defined by Federal Acquisition Regulation Subpart 16.202. Accordingly, the Contractor shall ensure that any and all costs associated with the Contractor's proposed application(s), software products, software solution, and/or system, shall be included in the Contractor's proposed firm-fixed price, and shall serve as the Contractor's firm-fixed price for the life of any resulting contract. No additional costs or fees relative to the Contractor's proposed application(s), software products, software solution, and/or system including, but not limited to, licensing costs and any associated licensing maintenance required for the development, delivery, integration, operation, and/or maintenance of the Contractor's proposed solution will be allowed, accepted, and/or paid by the Government.

Note - Respondents are instructed to complete Section B.4 and submit with their quote. Respondents are cautioned that alterations to the line items as specified below may render quotes unacceptable.

Inspection/Acceptance/Free on Board: Destination

BASE PERIOD					
Period of Performance (PoP): May 1, 2026 through April 30, 2027					
Product Service Code (PSC): W074 for all Contract Line-Item Numbers (CLIN) unless otherwise noted.					
CLIN/SLIN	Description	Qty	Unit	Unit Price	Total Price
0001	The contractor shall provide all resources necessary to accomplish the deliverables described in this Performance Work Statement (PWS). This requirement calls for a turnkey operation. The contractor shall provide a full-service lease and maintenance agreement, with the exclusion of paper for all items identified in Attachment A, Attachment B, and 1 on-site person 40 hours a week to perform maintenance and repair services on devices located throughout the Atlanta Veterans Administration Medical Center (VAMC) located at 1670 Clairmont Road, Decatur, Georgia 30033; as well as all Community Based Out-patient Clinics (CBOCs.) located throughout the state of Georgia and support facilities as required.	12	Month (MO)	\$	\$
0001AA	<u>Deliverable</u> Contractor Project Management Plan	1	Lot (LT)	NSP	NSP

	IAW PWS 5.1.1 Due 30 Days After Receipt of Order and updated monthly thereafter. Electronic submission to: VA PM, COR, CO				
0001AB	<u>Deliverable</u> Monthly Progress Report IAW PWS 5.1.2 Due by 10th day of each month. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AC	<u>Deliverable</u> Quarterly Status Review Meeting Minutes IAW PWS 5.1.3 Due 3 days after meeting. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AD	<u>Deliverable</u> MFD Implementation Plan IAW PWS 5.3 Due at completion of each site installation. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AE	<u>Deliverable</u> MFD Technical and User Documentation IAW PWS 5.3 Due at completion of each site installation. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AF	<u>Deliverable</u> Site Network and Configuration Documentation IAW PWS 5.3 Due at completion of each site installation. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP

0001AG	<u>Deliverable</u> Authority to Operate Artifacts IAW PWS 5.3.1 Due 30 days after contract award and updated monthly until ATO is granted. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AH	<u>Deliverable</u> Consumable Ordering Process IAW PWS 5.4.5.4 Due 30 days after contract award for Gov't approval. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AJ	<u>Deliverable</u> Statement of Attestation IAW PWS 6.1.12 Due 3 days after CO Authorization for use of AI and at a minimum annually thereafter (submitted prior to the exercise of any option periods), and at COR request, and upon the Contractor's proposed use of any new AI tools not contemplated at the time of last reporting. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AK	<u>Deliverable</u> AI System/LLM Development and Operation Documentation Package IAW PWS 6.1.12.1 Due 15 days after award and updated annually thereafter as revisions require Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AL	<u>Deliverable</u> Compliance Monitoring and Reporting Plan IAW PWS 6.1.12.2 Due 30 days after award	1	LT	NSP	NSP

	Electronic submission to: VA PM, COR, CO				
0001AM	<u>Deliverable</u> Corrective Action Plan IAW PWS 6.1.12.2 Due 10 business days after identification of any deviation of AI Principles Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AN	<u>Deliverable</u> AI Model/LLM Change Disclosure IAW 6.1.12.3 Due 30 days prior to implementation of change Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
0001AP	<u>Deliverable</u> Contractor Staff Roster IAW PWS 6.2.2 Due 3 days after contract award and update throughout the period of performance. Electronic submission to: VA PM, COR, CO	1	LT	NSP	NSP
BASE PERIOD TOTAL					\$
TASK ORDER TOTAL					\$

B.5 PERFORMANCE WORK STATEMENT



PERFORMANCE WORK STATEMENT (PWS) DEPARTMENT OF VETERANS AFFAIRS

**Office of Information & Technology
Veterans Health Administration**

**Multifunction Device Lease and Support Services
Atlanta VA Medical Center**

**Date: April 24, 2026
VA-26-00053801
PWS Version Number: 1.2**

1.0 BACKGROUND

The Department of Veterans Affairs (VA), through the Office of Information & Technology (OIT) and the Veterans Health Administration (VHA), is committed to delivering high-quality, efficient, and reliable Information Technology (IT) services that support those who provide care to our Veterans. To ensure that clinical and administrative teams can perform their work effectively—at the point of care and across every stage of the Veteran’s healthcare journey, the VA relies on robust Information Management/Information Technology capabilities.

As part of this mission, the VA must maintain modern, secure, and dependable office technology. Procuring MFDs is essential to supporting daily operations, enabling staff to print, scan, copy, and securely transmit documents needed for patient care, administrative coordination, and compliance with federal information-management standards. Ensuring access to reliable MFD equipment directly contributes to operational efficiency and helps the VA continue to deliver timely, compassionate, and effective services to Veterans.

2.0 APPLICABLE DOCUMENTS

In the performance of the tasks associated with this Performance Work Statement, the Contractor shall comply with the following:

1. “Federal Information Security Modernization Act of 2014”
2. Federal Information Processing Standards (FIPS) Publication 140-3, “Security Requirements for Cryptographic Modules”, March 22, 2019
3. FIPS Pub 199. “Standards for Security Categorization of Federal Information and Information Systems,” February 2004
4. FIPS Pub 200, “Minimum Security Requirements for Federal Information and Information Systems,” March 2006
5. FIPS Pub 201-3, “Personal Identity Verification of Federal Employees and Contractors,” January 2022
6. 10 U.S.C. § 2224, “Defense Information Assurance Program”, as amended
7. 5 U.S.C. § 552a, as amended, “The Privacy Act of 1974”
8. Public Law 109-461 (P.L. 109-461), Veterans Benefits, Health Care, and Information Technology Act of 2006, as amended, Title IX, Information Security Matters
9. 42 U.S.C. § 2000d “Title VI of the Civil Rights Act of 1964”, as amended
10. VA Directive 0710, “Personnel Vetting Program,” September 8, 2025, <https://www.va.gov/vapubs/index.cfm>
11. VA Handbook 0710, “Personnel Vetting Program,” September 8, 2025, <https://www.va.gov/vapubs/index.cfm>
12. VA Directive 6102, “Internet/Intranet Services,” August 5, 2019
13. 36 C.F.R. Part 1194 “Information and Communication Technology Standards and Guidelines,” as amended
14. Office of Management and Budget (OMB) Circular A-130, “Managing Federal Information as a Strategic Resource,” July 28, 2016
15. 32 C.F.R. Part 199, “Civilian Health and Medical Program of the Uniformed Services (CHAMPUS)”, as amended

16. NIST SP 800-66 Rev. 2, "Implementing the Health Insurance Portability and Accountability Act (HIPAA) Security Rule: A Cybersecurity Resource Guide," February 2024
17. 45 C.F.R Parts 160 and 164, Subparts A and E, the Standards for Privacy of Individually Identifiable Health Information ("Privacy Rule"); and 45 C.F.R. Parts 160 and 164, Subparts A and C, the Security Standard ("Security Rule"); as amended
18. Sections 504 and 508 of the Rehabilitation Act (29 U.S.C. § 794d), as amended
19. Homeland Security Presidential Directive (12) (HSPD-12), August 27, 2004
20. VA Directive 6500, "VA Cybersecurity Program," February 24, 2021 (see VA NOTICE 24-18, dated September 27, 2024, "Update to VA Directive 6500 Cybersecurity Program", and VA Notice 25-07, dated 3/18/25, "Amending VA Directive 6500 to incorporate M-24-15")
21. VA Handbook 6500, "Risk Management Framework for VA Information Systems VA Information Security Program," February 24, 2021 (see VA Notice 25-01, dated October 15, 2024, "Update to VA Handbook 6500 Risk Management Framework for VA Information Systems VA Information Security Program", and VA Notice 25-06, dated 3/18/25, "Amending VA Directive 6500 to incorporate M-24-15", VA Notice 25-16, dated September 15, 2025, "Amending VA Handbook 6500 to Replace Enterprise Mission Assurance Support Services Tool With Office of Information Technology Governance Risk Compliance Tool, and VA Notice 25-17, dated September 22, 2025, "Rescission Of Office Of Information Security (OIS) Deputy Assistant Secretary (DAS) Memorandum – Requirements of Proper Plan of Action and Milestones (POA&M) Completion)
22. VA Handbook 6500.2, "Management of Breaches Involving Sensitive Personal Information (SPI)," June 30, 2023
23. VA Handbook 6500.6, "Contract Security," March 12, 2010 (see VA Notice 24-12, dated April 22, 2024, "Update to VA Handbook 6500.6, Contract Security, Appendix C VA Information and Information System Security/Privacy Language For Inclusion Into Contracts, As Appropriate")
24. VA Handbook 6500.8, "Information System Contingency Planning," March 25, 2025
25. VA Handbook 6500.10, "Mobile Device Security Policy," February 15, 2018 (see VA NOTICE 25-10, dated June 9, 2025, "Use of Personally Owned Mobile Devices Policy Amendment of Department of Veterans Affairs Handbook 6500.10", and VA Notice 25-15, dated August 22, 2025, "Update to VA Handbook 6500.10 Mobile Device Security Policy")
26. VA Handbook 6500.11, "VA Firewall Configuration," August 22, 2017
27. OIT Process Asset Library (PAL), [OIT Process Asset Library](#).
28. One-VA Technical Reference Model (TRM) (reference at <https://www.va.gov/trm/TRMHomePage.aspx>)
29. VA Directive 6508, "Implementation of Privacy Threshold Analysis and Privacy Impact Assessment," October 15, 2014
30. VA Directive 6510, "VA Identity, Credential and Access Management," September 3, 2024
31. VA Handbook 6510, "VA Identity, Credential and Access Management," September 27, 2024

32. VA Directive and Handbook 6513, "Secure External Connections," October 12, 2017
33. VA Directive 6300, "Records and Information Management," September 21, 2018
34. VA Handbook, 6300.1, "Records Management Procedures," March 24, 2010
35. NIST SP 800-37 Rev 2, "Risk Management Framework for Information Systems and Organizations: A System Life Cycle Approach for Security and Privacy," December 2018
36. NIST SP 800-53 Rev. 5, "Security and Privacy Controls for Federal Information Systems and Organizations," September 23, 2020 (includes updates as of 12/10/2020)
37. VA Directive 0735, "Homeland Security Presidential Directive 12 (HSPD-12) Program," October 26, 2015
38. VA Handbook 0735, "Homeland Security Presidential Directive 12 (HSPD-12) Program," March 24, 2014
39. OMB Memorandum 05-24, "Implementation of Homeland Security Presidential Directive (HSPD) 12 – Policy for a Common Identification Standard for Federal Employees and Contractors," August 5, 2005
40. OMB Memorandum M-19-17, "Enabling Mission Delivery Through Improved Identity, Credential, and Access Management," May 21, 2019
41. OMB Memorandum, "Guidance for Homeland Security Presidential Directive (HSPD) 12 Implementation," May 23, 2008
42. Federal Identity, Credential, and Access Management (FICAM) Architecture, June 30, 2023 ([FICAM Architecture \(idmanagement.gov\)](https://www.ficam.gov/ficam-architecture))
43. NIST SP 800-116 Rev 1, "Guidelines for the Use of Personal Identity Verification (PIV) Credentials in Facility Access," June 2018
44. NIST SP 800-63 Rev 4, 800-63A-4, 800-63B-4, 800-63C-4, "Digital Identity Guidelines," August 1, 2025
45. NIST SP 800-157, "Guidelines for Derived PIV Credentials," December 2014
46. VA Memorandum, VAIQ #7100147, "Continued Implementation of Homeland Security Presidential Directive 12 (HSPD-12)," April 29, 2011 (reference <https://www.voa.va.gov/documentlistpublic.aspx?NodeID=514>)
47. IAM Identity Management Business Requirements Guidance document, May 2013, (reference Enterprise Architecture Section, PIV/IAM (reference <https://www.voa.va.gov/documentlistpublic.aspx?NodeID=514>))
48. VA Memorandum "Personal Identity Verification (PIV) Logical Access Policy Clarification," July 17, 2019, <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4896>
49. Trusted Internet Connections (TIC) 3.0 Core Guidance Documents, <https://www.cisa.gov/publication/tic-30-core-guidance-documents>
50. OMB Memorandum M-19-26, "Update to the Trusted Internet Connections (TIC) Initiative," September 12, 2019
51. OMB Memorandum M-08-23, "Securing the Federal Government's Domain Name System Infrastructure," August 22, 2008
52. Sections 524 and 525 of the Energy Independence and Security Act of 2007, (P.L. 110–140), December 19, 2007
53. Section 104 of the Energy Policy Act of 2005, (P.L. 109–58), August 8, 2005
54. Executive Order 13221, "Energy-Efficient Standby Power Devices," August 2, 2001

55. Executive Order 14148, "Initial Rescissions of Harmful Executive Orders and Actions," dated January 20, 2025
56. VA Directive 0057, "VA Environmental Management Program," October 25, 2022
57. OIS VAIQ #7424808 Memorandum, "Remote Access," January 15, 2014, <https://www.voa.va.gov/DocumentListPublic.aspx?NodeId=28>
58. Clinger-Cohen Act of 1996, 40 U.S.C. §11101 and §11103
59. "Veteran Focused Integration Process (VIP) Guide 4.0," March 2021, <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4371>
60. VA Memorandum "Proper Use of Email and Other Messaging Services," January 2, 2018, <https://www.voa.va.gov/DocumentListPublic.aspx?NodeId=28>
61. "Product Line Management Transformation Playbook" version 3.1, August 2023, <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4946>
62. NIST SP 500-267B Revision 1, "USGv6 Profile," November 2020
63. OMB Memorandum M-21-07, "Completing the Transition to Internet Protocol Version 6 (IPv6)," November 19, 2020
64. Social Security Number (SSN) Fraud Prevention Act of 2017
65. Section 240 of the Consolidated Appropriations Act (CAA) 2018, March 23, 2018
66. C.F.R Title 15 Part 7, "Securing the Information and Communications Technology and Services (ICTS) Supply Chain", as amended
67. Executive Order 14028, "Executive Order on Improving the Nation's Cybersecurity," May 12, 2021, <https://bidenwhitehouse.archives.gov/briefing-room/presidential-actions/2025/01/16/executive-order-on-strengthening-and-promoting-innovation-in-the-nations-cybersecurity/>
68. OMB Memorandum M-22-09, "Moving the U.S. Government Toward Zero Trust Cybersecurity Principles", January 26, 2022, <https://www.whitehouse.gov/wp-content/uploads/2022/01/M-22-09.pdf>.
69. NIST SP 800-52 Revision 2, "Guidelines for the Selection, Configuration, and Use of Transport Layer Security (TLS) Implementations
70. OMB M-26-05, "Adopting a Risk-based Approach to Software and Hardware Security," January 23, 2026
71. OMB M-21-31, "Improving the Federal Government's Investigative and Remediation Capabilities Related to Cybersecurity Incidents," August 27, 2021
72. NIST SP 800-88 Revision 1 "Guidelines for Media Sanitization," December 2014
73. CISA Binding Operational Directive (BOD) 19-02: "Vulnerability Remediation Requirements of Internet-Accessible Systems," April 29, 2019, [BOD 19-02: Vulnerability Remediation Requirements for Internet-Accessible Systems | CISA](#)
74. CISA BOD 22-01: "Reducing the Significant Risk of Known Exploited Vulnerabilities," November 3, 2021, [BOD 22-01: Reducing the Significant Risk of Known Exploited Vulnerabilities | CISA](#)
75. CISA BOD 23-01: Improving Asset Visibility and Vulnerability Detection on Federal Networks." Cybersecurity & Infrastructure Security Agency (CISA), [BOD 23-01: Improving Asset Visibility and Vulnerability Detection on Federal Networks | CISA](#)

76. VA Directive 6550, Pre-Procurement Assessment and Implementation of Medical Devices/Systems, June 03, 2019
77. VA Memorandum, "VA Security Controls," January 17, 2025, <https://www.voa.va.gov/DocumentView.aspx?DocumentID=5010>
78. E.O. 13960, "Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government," December 3, 2020
79. E.O. 14319, "Preventing Woke AI in the Federal Government," July 23, 2025
80. OMB Memorandum [M-25-21](#), "Accelerating Federal Use of AI through Innovation, Governance, and Public Trust," April 3, 2025
81. OMB Memorandum [M-25-22](#), "Driving Efficient Acquisition of Artificial Intelligence in Government," April 3, 2025
82. OMB Memorandum [M-26-04](#), "Increasing Public Trust in Artificial Intelligence (AI) Through Unbiased AI Principles," December 11, 2025

3.0 SCOPE OF WORK

The Contractor shall provide a managed service lease for existing MFDs that are capable of secured printing, copying, scanning, and faxing for all of the Atlanta VA Medical Center (VAMC).

The Contractor shall continue to provide A3, A4 and other size Production and Non-Production MFDs according to Attachment A and Attachment B. Production MFDs are intended for high volume demands. The Contractor shall provide 10 device types identified in Attachment A consisting of a quantity of 9 Production MFDs and 306 Non-Production MFDs. The Production, Non-Production MFDs and Wide Format Printer shall be compatible with the Secure Network Fax, Scan and Print Solutions, and include maintenance, supplies/consumables and break/fix services.

The Contractor shall continue to provide MFD installation (move, add, change), network configuration, training, maintenance, technical support, relocation maintenance, supplies, and break/fix services for the managed service leased equipment.

The Contractor shall provide one full-time, dedicated on-site support associate to oversee and support MFD/Production and provide training and support for all software solutions deployed.

4.0 PERFORMANCE DETAILS

4.1 PERFORMANCE PERIOD

The lease Period of Performance (POP) shall be 12 months from date of award.

Any work at the Government site shall not take place on Federal holidays or weekends unless directed by the Contracting Officer (CO).

There are 11 Federal holidays set by law (USC Title 5 Section 6103) that VA follows:

Under current definitions, five are set by date:

New Year's Day	January 1
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Juneteenth	June 19
Independence Day	July 4
Veterans Day	November 11
Christmas Day	December 25

If any of the above falls on a Saturday, then Friday shall be observed as a holiday. Similarly, if one falls on a Sunday, then Monday shall be observed as a holiday.

The other six are set by a day of the week and month:

Martin Luther King's Birthday	Third Monday in January
Washington's Birthday	Third Monday in February
Memorial Day	Last Monday in May
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Thanksgiving	Fourth Thursday in November

4.2 PLACE OF PERFORMANCE

Tasks under this PWS shall be performed in VA facilities located throughout the Atlanta VAMC at 1670 Clairmont Road, Decatur, Georgia 30033; as well as all Community Based Out-patient Clinics (CBOCs.) located throughout the state of Georgia. Work may be performed at remote locations with prior concurrence from the Contracting Officer's Representative (COR).

4.3 TRAVEL

The Government anticipates travel under this effort to perform the tasks associated with the effort throughout the PoP. Include all estimated travel costs in your firm-fixed price line items. These costs will not be directly reimbursed by the Government.

Travel shall be in accordance with the Federal Travel Regulations (FTR) and requires advanced concurrence by the COR. Contractor travel within the local commuting area will not be reimbursed.

5.0 SPECIFIC TASKS AND DELIVERABLES

The Contractor shall perform the following:

5.1 PROJECT MANAGEMENT

5.1.1 CONTRACTOR PROJECT MANAGEMENT PLAN

The Contractor shall deliver a Contractor Project Management Plan (CPMP) that lays out the Contractor's approach, timeline, and tools to be used in execution of the contract. The CPMP should take the form of both a narrative and graphic format that displays the schedule, milestones, risks, and resource support. The CPMP shall also include how the Contractor shall coordinate and execute planned, routine, and ad hoc data collection reporting requests as identified within the PWS. The initial baseline

CPMP shall be concurred upon and updated in accordance with Section B of the contract. The Contractor shall update and maintain the VA Program Manager (PM) approved CPMP throughout the PoP.

Additionally, the Contractor shall provide a Project Manager to act as the main point of contact for coordination of resources throughout the implementation process across all Atlanta VAMC locations. Please see Attachments A and B for requirement list of Atlanta VAMC locations, type of devices per location, quantities per location and salient characteristics of the required devices.

Deliverable:

A. Contractor Project Management Plan

5.1.2 REPORTING REQUIREMENTS

The Contractor shall provide the COR with Monthly Progress Reports in electronic form in Microsoft Word and Project formats. The report shall include detailed instructions/explanations for each required data element, to ensure that data is accurate and consistent. These reports shall reflect data as of the last day of the preceding month.

The Monthly Progress Reports shall cover all work completed during the reporting period and work planned for the subsequent reporting period. The report shall also identify any problems that arose and a description of how the problems were resolved. If problems have not been completely resolved, the Contractor shall provide an explanation including their plan and timeframe for resolving the issue. The report shall also include an itemized list of all Information and Communication Technology (ICT) deliverables and their current Section 508 conformance status. The Contractor shall monitor performance against the CPMP and report any deviations. It is expected that the Contractor will keep in communication with VA accordingly so that issues that arise are transparent to both parties to prevent escalation of outstanding issues.

Each device offered shall perform successfully under all working conditions including, but not limited to multiple users, environmental differences, paper recycled content, and extended hours of operation. The Monthly Progress Report shall include a Monthly Copier Usage Report to the COR before the 10th business day of the month. This report shall detail the device usage, forms of use, and locations for each device.

Deliverable:

A. Monthly Progress Report

5.1.3 QUARTERLY STATUS REVIEW MEETINGS

The Contractor shall provide Quarterly Status Review meetings to present Contractor monitored data collected by the Contractor's Device Management Tools and progress review on equipment status. The Contractor shall provide Quarterly Status Review Meeting Minutes to cover items discussed, data monitored, collected and action items generated.

Deliverable:

- A. Quarterly Status Review Meeting Minutes

5.2 MFD GENERAL REQUIREMENTS

The Contractor shall provide 315 MFD devices consisting of 306 nonproduction MFDs and 9 production MFDs in accordance with Attachments A and B. The Contractor shall provide, install and have operational 315 devices within 90 calendar days after contract award. Attachment A identifies the locations, quantities and devices. Attachment B identifies the salient characteristics of the 10 types of MFDs.

5.3 INSTALLATION, SETUP AND CONFIGURING

The Contractor shall work with the Atlanta VAMC to document and agree upon the following processes for installed devices in an MFD Implementation Plan:

- Move, Add, Change (MAC) processes to control the device population, location, and mix. On average, MACs are performed once per month.
- Break/fix service processes.
- Supplies management processes.
- Meter read processes for networked devices including devices that are not accessible by Contractor's device management technology.

In coordination with Atlanta VAMC OIT personnel, Contractor shall install, network and configure Contractor Device Management software tools running on an Atlanta VAMC provided server located on the Atlanta VAMC network to perform proactive device management services, proactive supply monitoring and automatic meter reads. The Contractor shall provide for each site installation, all MFD Technical and User Documentation for devices installed at the site.

At the completion of each location installation, the Contractor shall provide a functional demonstration of MFD operations for Government acceptance. Requirement nonconformance shall be corrected by the Contractor and re-demonstrated for Government acceptance. The Contractor shall provide a copy of the Site Network and Configuration Documentation upon completion of each site demonstration detailing site specific network and equipment/device configurations.

Deliverables:

- A. MFD Implementation Plan
- B. MFD Technical and User Documentation
- C. Site Network and Configuration Documentation

5.3.1 DEVICE MANAGEMENT

The Contractor shall implement a variety of device management tools. These tools will be used by the Contractor MFD Operations Team to identify, manage and report on all aspects of this service. The Contractor shall configure, use, and manage the tools for proactive maintenance, escalation, problem resolution, and tracking.

The Contractor shall deliver all Authority to Operate (ATO) Artifacts necessary to obtain an ATO and meet Federal Risk and Authorization Management Program (FedRAMP) for Off-site and On-site device management and MFD back-office tools used in managing print environments

Deliverable:

A. ATO Artifacts

5.3.1.1 CONTRACTOR OFF-SITE TOOLS AND APPLICATION HOSTING

If Contractor solution requires off-site hosting, the Contractor shall host Contractor Tools in a secure off-site environment. All Contractor Tools shall be accessible by the Contractor MFD Operations Team personnel and designated Atlanta VAMC personnel. The Contractor and Atlanta VAMC will agree upon the content and frequency of secure encrypted communications with tools at the hosted Contractor site. Contractor Hosted Site Tools may include:

- Services Management Tool – includes a consolidated asset database for data such as in-scope asset physical location, device usage, supply inventory management, cost tracking and reporting. Also, it includes end-to-end incident management functionality and provides service level management and reporting.
- Report Management Tool – a data warehouse where Contractor account operations staff can schedule and run a variety of management reports. Upon implementation of the Contractor Tools and related business processes, the Contractor shall provide ongoing maintenance and updates of the Contractor Tools, as necessary.
- End User Portal – providing customer access to fleet information.

5.3.1.2 CONTRACTOR ON-SITE TOOLS FOR PROACTIVE DEVICE MANAGEMENT

Contractor Device Management Tools shall be installed on the Atlanta VAMC's network to automatically monitor the MFD devices. Information shall be collected by the Device Management Tools and then uploaded and maintained in a Contractor Hosted Asset Incident Management database. Contractor Device Management tools shall collect device status information including usage counters, consumable levels, fault history and perform automated network device discovery without Atlanta VAMC intervention. Using these tools, proactive alerts will enable Contractor to provide proactive service delivery, correcting device faults and out-of- service conditions proactively. In addition, the tools will enable remote problem resolution, timely and accurate meter collection, device utilization reporting and improved asset utilization.

Using device management technology, the Contractor shall monitor consumables on networked, in scope devices that are configured for consumable alerts and proactively order consumables for delivery on a just in time basis. Device Management Tools shall provide device and usage data for Atlanta VAMC reporting and analysis.

Data that is monitored and collected by the Device Management Tools shall be summarized and reported in Quarterly Status Review Meetings, where it can be used to support decisions that drive improved efficiency and asset utilization.

5.4 MAINTENANCE AND SUPPORT

5.4.1 HELP DESK SERVICES

The Contractor shall establish a dedicated toll-free phone number and on-line for the Atlanta VAMC to use to place calls to the Contractor Help Desk.

Help Desk services shall provide Atlanta VAMC end-users with a convenient customer care resource to receive, dispatch, track, escalate, process and close commonly requested services for in-scope devices. End-user requests may include questions about device operation, relocation, upgrades, acquisition, supplies and service. Inquires may be initiated in person, by phone or via a Fleet Management Portal specifically designed to support online ticketing and service ordering capability.

The Help Desk/Fleet Management Portal shall serve as a point of contact to receive, document, process and track customer requests for a variety of services related to in-scope devices, answer end-user questions about the features, functions and operation of in-scope government-owned printers and answer or facilitate resolution of all Contractor related questions or concerns.

Calls can be placed to the established Help Desk phone number during the standard hours of operation. Inquires can also be initiated 24/7 via an Online Fleet Management portal. Help Desk services shall be available Monday through Friday, 8:00 a.m. to 5:00 p.m. EST.

The Help Desk shall record the customer's call and information pertaining to the request. Some problem calls may be resolved directly over the phone. The Help Desk may apply remote service diagnostics to resolve the request directly through remote resolve capabilities, if possible. If not, the request shall be dispatched for on-site resolution.

5.4.2 CONSUMABLES MANAGEMENT

The Contractor shall provide all consumables required for in-scope devices including staples for MFDs. Consumables shall consist of ribbons, cartridges, staples, toners and drums. Contractor Device Management technology shall be configured to detect low consumables conditions on in-scope connected devices. The Contractor shall monitor devices configured for consumable alerts and proactively order consumables for delivery on a just in time basis.

The Contractor First Responder (see section 5.4.5.1) serves as the initial point of contact for all supply related requests and shall respond to all verbal VA employee supply calls within 2 business hours from receipt of call. The Contractor and First Responder shall create a documented supply ordering process for all contracted equipment.

In addition, end-users may order consumables through the Help Desk or Web Portal. Authorized users may order metered supplies through the Help Desk. The Help Desk receives, tracks and fulfills customer requests for consumable supplies. The Contractor shall ship consumables and supplies to each site using common carriers. Standard ground shipping expenses for supplies shall be included.

5.4.3 DEVICE BREAK/FIX MAINTENANCE

Contractor shall include device maintenance services. Device maintenance includes break/fix services and routine maintenance for the MFD devices. The break/fix process is the management of repair and maintenance requests for all output devices. Break/Fix management includes service dispatch, tracking repair disposition, tracking of costs and supply parts.

Networked MFD devices shall be monitored for out of service conditions or potential faults by Contractor Device Management technology. Monitoring these conditions allows for the Contractor to either remotely resolve the condition or proactively dispatch a service technician for a resolution.

Contractor shall provide the following proactive maintenance services:

- Call dispatching services through a single point of contact (onsite First Responder) for in-scope devices.
- Maintenance on in-scope devices per a documented break/fix service process.

Contractor On-site Technical Agent (see section 5.4.5.1) shall be available Monday through Friday from 8:00 a.m. to 4:30 p.m. EST, except Federal holidays to provide primary maintenance support at the Atlanta VAMC Main Medical facility. Such services shall include preventive maintenance, service calls, repairs, supplies management, troubleshooting and connectivity support. Provision of on-site staff shall not be construed to relieve the Contractor of described service responsibilities.

5.4.4 ASSET MANAGEMENT

Contractor shall maintain an asset inventory of all devices that are within the scope of this agreement. Device inventory data shall be recorded in a Contractor asset management database. Accuracy of device data in the database is critical to performance of the Managed Print Services and delivery of the Service Level Agreement.

Contractor shall inventory and track all devices that are in-scope throughout the Move, Add, Change and Dispose lifecycle. Contractor monitors changes to devices with Atlanta VAMC's cooperation to accurately track and monitor the devices over the length of the agreement.

Contractor shall develop and print asset tags to be applied during the asset tagging process. Asset tags are affixed to the front of the device and visible to end-users.

Contractor shall use a Services Management Tool with an integrated asset database to record device data such as asset locations, device usage, supply inventory management, cost tracking and reporting.

5.4.5 ON-SITE SUPPORT

5.4.5.1 CONTRACTOR ON-SITE TECHNICAL AGENT (COTA)

The Contractor shall provide one Contractor On-site Technical Agent (COTA) to manage the Contractor's fleet of MFDs and act as a first responder providing first level maintenance, break/fix services and replacing consumables on the devices. The COTA shall be the first point of contact for any and all service and maintenance calls on equipment leased on this contract.

The COTA shall be stationed at the Atlanta VAMC Main Facility at 1670 Clairmont Road Decatur GA 30033 and will either travel to, remotely support, or be responsible for scheduling necessary technical support for the remaining locations as identified in Attachment A.

For the purpose of this Contract, there is one designated primary point-of-contact; located at Atlanta VAMC Main Facility at 1670 Clairmont Road Decatur GA 30033. Other approved Atlanta VAMC points-of-contact may be assigned as needed. The COTA shall be 100% dedicated to the Atlanta VAMC and all locations listed in Attachment A.

The Contractor shall provide COTA Back-up personnel as needed for planned absences that occur during normal hours of operation for all Atlanta VAMC locations. For unexpected absences, COTA Back-up personnel shall be provided within eight hours of notification to the Contractor supervisor.

The VA will provide sufficient office/working space, phone line, personal computer, and necessary network access. In addition, the VA will provide parking for the COTA. The Contractor shall provide direct management of the COTA conducting at minimum bi-monthly site-operation inspections and the Contractor Project Manager shall act as the primary contact for all COTA escalations.

5.4.5.2 COTA SUPPORT AND MAINTENANCE RESPONSIBILITIES

The COTA shall provide the following support and maintenance services:

1. Serves as the initial point of contact to perform first level troubleshooting on all equipment service calls.
2. Begin repairs within 2 business hours from receipt of call.
3. Diagnose and correct common image quality problems.
4. Replace major components in the print engine, fusing subsystem, and paper handling areas of copiers and printers.
5. Provide 95% up time.

6. With the help desk, maintain a copier/printer service call log for all machines covered by this contract.
7. Maintain equipment parts inventory to meet required uptime.
8. Create and utilize processes and tools that prevent the need for second level service calls to be placed; including but not limited to the use of eService web-based tools that provide self-help, how-to information, troubleshooting guidelines, and other technical resources to resolve problems locally. This requires the COTA to have access to a computer and to the internet at the customer site. Atlanta VAMC will provide a computer and internet access to the COTA for this purpose.
9. Clean and provide preventative maintenance on all contracted equipment as required to maintain image quality and performance.
10. Provide training to end-users as needed.
11. Create helpdesk ticket to engage Atlanta VAMC OI&T support when needed.
12. Proactively monitor and perform or schedule preventative maintenance.
13. Perform routine upkeep of equipment; cleaning glass and surfaces, clearing paper jams, and replenishing toner.
14. Perform daily checks of all contractor provided equipment / solutions and ensure that all equipment features and functionality are working as required.

5.4.5.3 COTA SUPPLIES MANAGEMENT RESPONSIBILITIES

The COTA shall provide the following supplies management services:

1. Serves as the initial point of contact for all supply related requests and shall, along with the contractor help desk, proactively monitor the entire fleet of installed equipment, including any off-site locations associated with that location (i.e., CBOCs) for consumable supplies. Atlanta VAMC staff will not bear the responsibility of ordering consumable supplies at any location throughout this contract.
 - a. The COTA shall replace and dispose of consumables for each MFD in the fleet at their location.
 - b. For the remote locations, the COTA shall ensure consumables are on hand for replacement by the VA staff.
2. The VA will provide sufficient, secure supply storage space for supply inventory.
3. The COTA shall order all supplies, and all supply orders for stock shall be received from Contractor within 48 hours of order placement.
4. COTA shall use Contractor provided proactive software tools to remotely monitor supply levels of Contractor owned equipment.
5. For VA locations residing outside of Atlanta VAMC Main Campus (see Attachment A), the COTA shall develop a delivery/distribution plan for delivery of consumable supplies.

5.4.5.4 COTA STANDARD OPERATION PROCEDURES

The COTA shall:

1. Report to work at Atlanta VAMC, Monday through Friday, 8:00 a.m. to 4:30 p.m. local time (includes 30-minute unpaid lunch period), excluding Federal Holidays.
2. Serve as a first responder and be the initial point-of-contact to troubleshoot and

- respond to VA personnel Contractor equipment-related questions and issues during normal working hours.
3. With the Contractor's help desk, assign a unique reference number to all user incident and service requests. This unique reference number shall be included in any communication or report created by the COTA.
 4. Augment the Contractor's standard break/fix service process to maximize equipment uptime and maintain peak equipment performance.
 5. For all service requests, acknowledge and respond to all requests within two hours after notification. If unable to resolve the issue, the COTA shall engage and coordinate Contractor's Level 2 support. If a field service technician is required to resolve the issue, the repair response shall begin within eight hours of the initial problem notification to the COTA. Until service issue is fully resolved, the COTA shall provide follow-up communication to engage support resources including but not limited to:
 - (a) Next higher-level support
 - (b) Atlanta VAMC OIT (if needed)
 - (c) Provide service status updates to end-user customer and Atlanta VAMC primary point-of-contact
 6. While working with the Atlanta VAMC designated Primary POC, the COTA shall manage change control of MFD equipment including, but not limited to monitoring and validating the delivery, installation, relocation, service call completion, and removal of MFDs.
 7. Assist the Atlanta VAMC designated primary point-of-contact and the Logistics Service Chief with changes in device sizing decisions.
 8. Initiate the Contractor's standard break/fix service process, initiate contact for additional services, place service calls for a field service technician, coordinate and interact with Contractor technicians and software support.
 9. Provide ad hoc reports and equipment performance information to the designated Atlanta VAMC point-of-contact upon request. Ad hoc reports shall include but are not limited to the following: service history reports containing frequency of service calls, production volume between repairs, type of repairs, parts required, and equipment down time.
 10. Perform software/firmware updates as required with the approval of the designated Atlanta VAMC points-of-contact. All software/firmware updates shall be provided by the Contractor at no additional cost to the government including updates needed for compatibility with future operating systems and to maintain One-VA TRM approval.
 11. Provide monthly meter reads for all MFDs in the Monthly Copier Usage Report. The meter reads for each device in the entire fleet shall be collected manually by Contractor's designated meter read receiving system and provided to the designated Atlanta VAMC primary point-of-contact.
 12. Conduct monthly inventory and manage distribution of MFD consumables.
 13. Replenish all MFD consumables including toner and staples as requested. Within 30 days after contract award, the Contractor and COTA shall create a documented consumable ordering process for all contracted equipment and submit to the designated Atlanta VAMC primary point-of-contact for approval.

Deliverable:

- A. Consumable Ordering Process

6.0 GENERAL REQUIREMENTS

6.1 ENTERPRISE AND IT FRAMEWORK

6.1.1 VA TECHNICAL REFERENCE MODEL

The Contractor shall comply with the VA OIT Technical Reference Model (VA TRM). Compliance with the VA TRM is achieved by using only technologies and standards that are listed as approved for use in the VA TRM. The Contractor shall provide all necessary information requested by VA to ensure TRM approval is obtained prior to use on VA's network.

The VA TRM is one component within the overall Enterprise Architecture (EA) that establishes a common vocabulary and structure for describing the information technology used to develop, operate, and maintain enterprise applications. Moreover, the VA TRM, which includes the Standards Profile and Product List, serves as a technology roadmap and tool for supporting OI&T. Architecture & Engineering Services (AES) has overall responsibility for the VA TRM.

6.1.2 ZERO TRUST – VA CRITICAL SECURITY CONTROLS

VA has established minimum mandatory security requirements and requires that any network connected software system or service must meet the VA Critical Security Controls as outlined in the VA Memorandum, "VA Security Controls", <https://www.voa.va.gov/DocumentView.aspx?DocumentID=5010>. VA Critical Security Controls identify the minimum mandatory requirements that must be implemented across all VA enterprise infrastructure, cloud computing environments, information systems, networks, and specialized devices (medical devices/systems, special-purpose systems, and research scientific computing devices) that process, store, and/or transmit VA data. Effective July 1, 2025, the Contractor shall implement these VA Critical Security Controls, within any network connected software system or service prior to being authorized for use in the VA. This functional requirement is not negotiable, and Plan of Action & Milestones (POAM) will not be accepted in the event these controls cannot be implemented for new systems. Critical Security Controls are intended to increase VA's security posture and provide security and privacy risk visibility into the VA network and is not a new requirement. The Contractor's failure to maintain these VA Critical Controls after implementation will result in VA discontinuing the use of the system.

6.1.3 FEDERAL IDENTITY, CREDENTIAL, AND ACCESS MANAGEMENT (FICAM)

The Contractor shall ensure Commercial Off-The-Shelf (COTS) product(s), software configuration and customization, and/or new software are Personal Identity Verification (PIV) card-enabled by accepting HSPD-12 PIV credentials using [VA Enterprise Architecture \(EA\)](#), and VA Identity and Access Management (IAM) approved [Enterprise Technology Guidelines \(ETG\)](#). The Contractor shall ensure all Contractor delivered applications and systems comply with the VA Identity, Credential, and Access

Management policies and guidelines set forth in Executive Order 14028, VA Handbook 6510 VA Identity and Access Management, VA Handbook 0735 Homeland Security Presidential Directive 12 (HSPD-12) Program, CISA Binding Operational Directive 23-01, and align with the Federal Identity, Credential, and Access Management Roadmap and Implementation Guidance v2.0.

The Contractor shall ensure all Contractor delivered applications and systems provide user authentication services compliant with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-63-3, VA Handbook 6500, and VA IAM enterprise requirements for direct, assertion based authentication, and/or trust based authentication, as determined by the ETGs. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV card and/or Common Access Card (CAC), as determined by the business need.

The Contractor shall ensure all Contractor delivered applications and systems conform to the specific Identity and Access Management PIV requirements set forth in the Office of Management and Budget (OMB) Memoranda [M-05-24](#), [M-19-17](#), [M-22-09](#), and NIST Federal Information Processing Standard (FIPS) 201-3. Contractor delivered applications and systems shall be on the FIPS 201 Approved Product List (APL). If the Contractor delivered application and system is not on the APL, the Contractor shall be responsible for taking the application and system through the FIPS 201 Evaluation Program.

The Contractor shall ensure all Contractor delivered applications and systems support:

1. Automated provisioning and are able to use enterprise provisioning service.
2. Interfacing with VA's Master Person Index (MPI) to provision identity attributes, if the solution relies on VA user identities. MPI is the authoritative source for VA user identity data.
3. The VA defined unique identity (Secure Identifier [SEC ID] / Integrated Control Number [ICN]).
4. Multiple authenticators for a given identity and authenticators at every Authenticator Assurance Level (AAL) appropriate for the solution.
5. Identity proofing for each Identity Assurance Level (IAL) appropriate for the solution.
6. Federation for each Federation Assurance Level (FAL) appropriate for the solution, if applicable.
7. Two-factor authentication (2FA) through an applicable Technology Guideline as outlined in VA ETG.
8. A Security Assertion Markup Language (SAML) implementation if the solution relies on assertion-based authentication. Additional assertion implementations, besides the required SAML assertion, may be provided as long as they are compliant with NIST SP 800-63-3 guidelines.
9. Authentication/account binding based on trusted Hypertext Transfer Protocol (HTTP) headers if the solution relies on Trust based authentication.
10. Role Based Access Control.
11. Auditing and reporting capabilities.
12. Compliance with VIEWS 00155984, PIV Logical Access Policy Clarification <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4896>.

The required Assurance Levels for this specific effort are Identity Assurance Level 3, Authenticator Assurance Level 3, and Federation Assurance Level 3.

6.1.4 INTERNET PROTOCOL VERSION 6 (IPv6)

The Contractor solution shall support IPv6-Only based upon the memo issued by the Office of Management and Budget (OMB) on November 19, 2020 (<https://www.whitehouse.gov/wp-content/uploads/2020/11/M-21-07.pdf>). Which defines IPv6-only as the state of an operational system or service when IPv4 protocol functions (addressing, packet forwarding) are not in use. The NIST USGv6 profile defines technical requirements for a product to be capable of operating in IPv6-Only environments. IPv6-Only technology, in accordance with the USGv6 Program (<https://www.nist.gov/programs-projects/usgv6-program/usgv6-revision-1>), NIST Special Publication (SP) 500-267B Revision 1 "USGv6 Profile" (<https://doi.org/10.6028/NIST.SP.500-267Br1>), and NIST SP 800-119 "Guidelines for the Secure Deployment of IPv6" (<https://doi.org/10.6028/NIST.SP.800-119>), compliance shall be included in all IT infrastructures, application designs, application development, operational systems and sub-systems, and their integration. In addition to the above requirements, all devices, applications, and systems shall support all applicable functionality on native IPv6-Only as well as dual stack (IPv6 / IPv4) connectivity without additional memory or other resources being provided by the Government, so that they can function in a mixed environment. All public/external facing servers and services (e.g., web, email, DNS, ISP services, etc.) shall support native IPv6-Only and dual stack (IPv6 / IPv4) users and all internal infrastructure and applications shall support using native IPv6-Only and dual stack (IPv6 / IPv4) for all functionality and operations.

6.1.5 TRUSTED INTERNET CONNECTION (TIC)

The Contractor solution shall meet the requirements outlined in Office of Management and Budget Memorandum M-19-26, "Update to the Trusted Internet Connections (TIC) Initiative" (<https://www.whitehouse.gov/wp-content/uploads/2019/09/M-19-26.pdf>), VA Directive 6513 "Secure External Connections", and shall comply with the TIC 3.0 Core Guidance Documents, including all Volumes and TIC Use Cases, found at the Cybersecurity & Infrastructure Security Agency (CISA) (<https://www.cisa.gov/publication/tic-30-core-guidance-documents>).

6.1.6 STANDARD COMPUTER CONFIGURATION

The Contractor IT end user solution that is developed for use on standard VA computers shall be compatible with and be supported on the standard VA operating system, Windows 11, Edge (Chromium based), and 365 Apps for enterprise. Applications delivered to VA and intended to be deployed to Windows 11 workstations shall be delivered as a signed .msi package with switches for silent and unattended installation and updates shall be delivered in signed .msp file formats for easy deployment using Microsoft Endpoint Configuration Manager (CM) VA's current desktop application deployment tool. Signing of the software code shall be through a vendor provided certificate that is trusted by VA using a code signing authority such as

Verizon/Cybertrust or Symantec/VeriSign. The Contractor shall also ensure and certify that their solution functions as expected when used from a standard VA computer, with non-admin, standard user rights that have been configured using the Defense Information Systems Agency (DISA) Secure Technical Implementation Guide (STIG) specific to the particular client operating system being used.

6.1.7 VETERAN FOCUSED INTEGRATION PROCESS (VIP) AND PRODUCT LINE MANAGEMENT (PLM)

The Contractor shall support VA efforts IAW the Veteran-Focused Integration Process (VIP) Guide and Product Line Management (PLM) Playbook. The major focus of VIP is on Enterprise Oversight, Governance, reporting, and establishing practices that focus on outcomes and continuously delivering sustainable IT capabilities to benefit the Veteran. PLM is a framework that focuses on delivering functional products that provide the highest priority work to customers while delivering simplified, reliable, and practical solutions to the business, medical staff, and our Veterans. The VIP Guide is a companion guide to the PLM Transformation Playbook and can be found at: <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4371> and the PLM Transformation Playbook can be found at <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4946>. VIP and PLM are the authoritative processes that IT projects must follow to ensure development and delivery of IT products.

The VIP Guide provides guidance for transitioning from project-centric to product-centric delivery. The VIP guide applies to all OIT Office of Management and Budget (OMB) reportable products that are required to collect and report costs, schedules, risks, and other valuable information in VA PARS (whether products are procured or developed by VA) and any VA Information Technology project effort in Software Product Management (SPM) and Infrastructure Operations (IO), or their successors, that touch the VA network regardless of IT organizational alignment (whether it spends government funding from VA's Congressional IT Appropriation or any other appropriation).

The PLM Transformation Playbook details how OIT leadership expects Product Lines (PLs) to implement PLM, DevOps, and Lean-Agile principles, methods, practices, and techniques through levels of maturity. The PLM Transformation Playbook applies to all Information Technology (IT) products aligned to PLs in the Software Product Management, Infrastructure Operations and Product Engineering organizations within the OIT organization.

Others outside the referenced groups or organizations may use the VIP Guide and PLM Transformation Playbook for situational awareness as needed.

6.1.8 PROCESS ASSET LIBRARY (PAL)

The Contractor shall perform their duties consistent with the processes defined in the OIT Process Asset Library (PAL). The PAL includes a spectrum of OIT functions and activities, such as project management, operations, service delivery, communications, acquisition, and resource management. PAL serves as an authoritative and informative repository of searchable processes, activities or tasks, roles, artifacts, tools and

applicable standards and guides to assist the OIT workforce, Government and Contractor personnel. OIT utilizes PAL processes to ensure compliance with policies and regulations and to meet VA quality standards. The PAL includes the contractor onboarding process consistent with Section 6.2.2 and can be found at [process CONB_ext.docx \(live.com\)](#). The main PAL can be accessed at www.va.gov/process.

6.1.9 AUTHORITATIVE DATA SOURCES

The VA Enterprise Architecture Repository (VEAR) is one component within the overall EA that establishes the common framework for data taxonomy for describing the data architecture used to develop, operate, and maintain enterprise applications. The Contractor shall comply with the department's Authoritative Data Source (ADS) requirement that VA systems, services, and processes throughout the enterprise shall access VA data solely through official VA ADSs where applicable, see below. The Information Classes which compose each ADS are located in the VEAR, in the Data & Information domain. The Contractor shall ensure that all delivered applications and system solutions support:

1. Interfacing with VA's Master Person Index (MPI) (formerly the Master Veteran Index (MVI)) to provision identity attributes, if the solution relies on VA user identities. MPI is the authoritative source for VA user identity data.
2. Interfacing with Capital Asset Inventory (CAI) to conduct real property record management actions, if the solution relies on real property records data. CAI is the authoritative source for VA real property record management data.
3. Interfacing with electronic Contract Management System (eCMS) for access to contract, contract line item, purchase requisition, offering vendor, and solicitation information above the micro-purchase threshold, if the solution relies on procurement data. ECMS is the authoritative source for VA procurement actions data.
4. Interfacing with HRSmart Human Resources Information System to conduct personnel action processing, on-boarding, benefits management, and compensation management, if the solution relies on personnel data. HRSmart is the authoritative source for VA personnel information data.
5. Interfacing with VA Profile to access personal contact information, if the solution relies on VA Veteran personal contact information data. VA Profile is the authoritative source for VA Veteran Personal Contact Data.
6. Interfacing with VA/Department of Defense (DoD) Identity Repository (VADIR) for determining eligibility for VA benefits under Title 38, if the solution relies on qualifying active duty military service data. VADIR is the authoritative source for qualifying active duty military service in VA.
7. Interfacing with VA Systems Inventory (VASI) to access VA systems information, if the solution relies on VA system information. VASI is the authoritative source for VA Information Technology systems.
8. Interfacing with Enterprise Mission Assurance Support Service (eMASS) to access the historical Authority to Operate (ATO) status of all VA Information Systems prior to migrating to ServiceNow Continuous Authorization and Monitoring (SNOWCAM) until it is determined the migration is completed and eMASS is sunset. eMASS contains the historical Authority to Operate (ATO)

status of all VA Information Systems prior to September 30, 2025, with all status provided through SNowCAM once migration is completed.

6.1.10 SOCIAL SECURITY NUMBER (SSN) REDUCTION

The Contractor solution shall support the Social Security Number (SSN) Fraud Prevention Act (FPA) of 2017 which prohibits the inclusion of SSNs on any document sent by mail. The Contractor support shall also be performed in accordance with Section 240 of the Consolidated Appropriations Act (CAA) 2018, enacted March 23, 2018, which mandates VA to discontinue using SSNs to identify individuals in all VA information systems as the Primary Identifier. The Contractor shall ensure that any new IT solution discontinues the use of SSN as the Primary Identifier to replace the SSN with the ICN in all VA information systems for all individuals. The Contractor shall ensure that all Contractor delivered applications and systems integrate with the VA MPI for identity traits to include the use of the ICN as the Primary Identifier. The Contractor solution may only use a Social Security Number to identify an individual in an information system if and only if the use of such number is required to obtain information VA requires from an information system that is not under the jurisdiction of VA.

6.1.11 GENERATIVE ARTIFICIAL INTELLIGENCE REQUIREMENTS

If Artificial Intelligence (AI) is part of the Contractor system/solution, the Contractor shall be in compliance with E.O. 13960 and 14319, OMB Memorandums M-25-21, M-25-22, and M-26-04, and VA Directive and Handbook 6500 to support VA in trustworthy, secure, responsible, accountable, Truth Seeking, and Ideologically Neutral AI innovation.

No web-based, publicly available generative AI service has been approved for use with VA-sensitive data including, but not limited to OpenAI's ChatGPT, Microsoft's Copilot, Google's Gemini, and Anthropic's Claude. No PII, protected health information (PHI), or VA-sensitive data should be entered into these unapproved services. The entire definition of VA Sensitive Data can be found at 38 U.S.C. § 5727 (23). The Contractor shall protect VA Sensitive data from unauthorized disclosure or use, and from being used to train or improve the functionality of the vendor's commercial offerings without express permission from VA.

The Contractor shall deliver the services, technical data, configurations, models, weights, documentation or other information, including source code, developed during contract performance. The Contractor, in collaboration with VA, must evaluate the output of any AI tool for accuracy prior to using the output in VA efforts. All data, including models, weights, algorithms, and outputs generated using either Government-furnished data or data first developed under this contract shall be the property of the Government with unlimited rights as defined by FAR 52.227-14. The Contractor shall also deliver any custom-developed code developed with AI methodologies in accordance with the SHARE IT Act, if applicable. VA shall also retain unlimited rights to any improvements to that data, including the continued design, development, testing, and operation of AI systems and/or systems utilizing AI.

The Contractor shall ensure that all AI Systems, including Large Language Models (LLM), whether standalone LLMs or integrated into broader software platforms, procured under this effort and/or used in performance of this contract complies with the Unbiased AI Principles as defined in Executive Order 14319 and OMB Memorandum M-26-04, e.g. Truth Seeking and Ideologically Neutral, as applicable to the intended use of the system.

The Contractor shall ensure that AI System/LLM generated outputs are truthful in responding to user prompts seeking factual information or analysis, prioritize historical accuracy, scientific inquiry, and objectivity, as well as acknowledge uncertainty where reliable information is incomplete or contradictory and do not fabricate, hallucinate, or present unverifiable information as fact.

The Contractor shall ensure that LLMs and AI outputs are neutral, nonpartisan tools that do not manipulate responses in favor of ideological dogmas such as Diversity, Equity, and Inclusion (DEI). The Contractor shall ensure that the LLMs, including the AI System, are not intentionally encoded with partisan or ideological judgments within an AI System's/LLM's outputs unless those judgments are prompted by or otherwise readily accessible to the end user.

Compliance with the AI requirements of this contract, including adherence to the Unbiased AI Principles, Truth-Seeking and Ideological Neutrality requirements, disclosure obligations, monitoring and reporting requirements, and corrective action responsibilities, is a material condition of eligibility for payment and continued performance. In accordance with OMB Memorandum M-26-04, failure to comply with these requirements, or refusal to take timely and appropriate corrective action to remedy identified noncompliance, may constitute a material breach of contract and may result in remedies consistent with the terms of the contract and applicable law including but not limited to withholding of payment, termination for cause/default, or other appropriate contractual remedies, as determined by the Contracting Officer.

All AI for delivery and/or use in performance of the contract shall adhere to the *VA Trustworthy AI Framework*, available at <https://department.va.gov/ai/trustworthy/>. Once the Contractor has obtained CO authorization to use specific AI in contract performance, the Contractor shall provide the COR a signed Statement of Attestation prior to AI implementation as identified in the Artificial Intelligence in VA Contracts clause, to include its associated list of AI being used in contract performance.

Deliverable:

A. Statement of Attestation

**6.1.11.1 AI SYSTEM/LLM DEVELOPMENT AND OPERATION
DOCUMENTATION REQUIREMENTS**

To enable Government continued assessment of compliance with Trustworthy AI requirements and both Unbiased AI Principles, Truth-seeking and Ideological Neutrality, in accordance with OMB M-26-04, the Contractor shall provide AI System/LLM Development and Operation Documentation Package to include, at a minimum:

1. Acceptable Use Policy

The Contractor shall provide an Acceptable Use Policy document governing its AI operation that characterizes and differentiates appropriate and inappropriate use of their product offering

2. Model Cards, System Cards and/or Data Cards

The Contractor shall provide documentation describing essential information about the model, system, and or data as it relates to the AI/LLM product offering. The documentation shall address summaries of training process, identified risks and mitigations, and model evaluation scores on LLM benchmarks at a minimum, where appropriate

3. End User Resources

The Contractor shall provide documentation to include product tutorials, developer guides, and/or other tools to assist VA in ensuring proper use of the AI/LLM to maximize utility

4. Mechanism for End User Feedback

The Contractor shall provide documentation describing the mechanism employed to provide feedback to the Offeror on outputs identified that violate the Unbiased AI Principles. This may be satisfied by a general inbox, specific Point of Contact, or similar feedback mechanism.

5. Pre-Training and Post-Training Activities of the AI System/LLM

The Contractor shall provide documentation of Pre-Training and Post Training Activity that provides details on:

- a. Actions taken that impact the factuality and grounding of AI System/LLM outputs
- b. System-level prompts that provide natural language instructions to the model specifying guidelines on responding to user-generated queries, to include how a model responds when reliable information is incomplete, contradictory, or subject to individual interpretation
- c. The type of outputs restricted via content moderation and safety filters
- d. The use of red teaming as a means of continuously assessing the model to protect against incidents of bias in generated output.
- e. Training or development, if any, that occurred outside the United States, to include the type of activity and the country in which it occurred.
- f. Any modifications or configurations undertaken to comply with any regulation from a government other than the U.S. Federal Government.

6. Model Evaluation Results and Methodologies

The Contractor shall provide documentation describing the Evaluation Results of bias evaluations conducted by the Vendor to include the methodology for performing such tests (e.g., testing prompt pairs for politically oriented topics).

The documentation shall also include Benchmark scoring results measuring the model's bias, helpfulness, honesty, or accuracy when provided with ambiguous versus straightforward questions. (Including any benchmarks comparing performance across multiple languages, where applicable).

7. Description of Enterprise-Level Controls

The Contractor shall provide documentation describing the Enterprise Governance tools and controls, such as:

- a. Customizable system instructions that are additive to a base model's system prompts or content generation filters.
- b. Product features that require a model to cite sources of its outputs or otherwise provide visibility into the provenance of the model's outputs.
- c. AI System/LLM model evaluation tools that enable comparisons either between a model's outputs, or across various models.

8. Third Party Modification Disclosure

The Contractor shall disclose of any additional controls to modify an AI Model's/LLM's output applied by the Contractor if the Contractor is not a direct developer of the LLM (e.g., classifiers, system prompts, fine-tuning, content moderation and filters, etc.)

Deliverable:

- A. AI System/LLM Development and Operation Documentation Package

6.1.11.2 MONITORING, REPORTING, AND CORRECTIVE ACTION

The Contractor shall develop and implement a Compliance Monitoring and Reporting Plan supporting ongoing monitoring processes to evaluate AI outputs for compliance with Trustworthy AI and Unbiased AI principles. This plan shall include the mechanism for authorized users to provide end user feedback to report suspected violations of Truth-Seeking or Ideological Neutrality requirements.

The Contractor shall notify the COR within 10 business days of identifying any material deviation from these principles and shall submit a written Corrective Action Plan describing mitigation steps, responsible parties, and timelines. Any material deviation, corrective action taken, and results shall be detailed in the Monthly Progress Reports.

Deliverable:

- A. Compliance Monitoring and Reporting Plan
- B. Corrective Action Plan

6.1.11.3 AI MODEL UPDATES AND CHANGE DISCLOSURES

The Contractor, in an AI Model/LLM Change Disclosure, shall notify the Government throughout the PoP in advance of any material changes to AI models, including new AI enhancements, features and/or components, controls, retraining, classifiers, system prompts, fine-tuning, content moderation, filters, version replacement, or architectural changes, that could reasonably affect compliance with Trustworthy AI or Unbiased AI principles. Updated documentation shall be provided to VA for VA approval prior to implementation of such changes.

Deliverable:

- A. AI Model/LLM Change Disclosure

6.2 SECURITY AND PRIVACY REQUIREMENTS

6.2.1 POSITION/TASK RISK DESIGNATION LEVEL(S)

In accordance with VA Handbook 0710, Personnel Vetting Program, the position sensitivity and the level of background investigation commensurate with the required level of access for the following tasks within the PWS are:

Position Sensitivity and Background Investigation Requirements by Task

Task Number	Tier1 / Low Risk	Tier 2 / Moderate Risk	Tier 4 / High Risk
5.1	☒	☐	☐
5.2	☒	☐	☐
5.3	☐	☒	☐
5.4	☐	☒	☐

The Tasks identified above and the resulting Position Sensitivity and Background Investigation requirements identify, in effect, the Background Investigation requirements for Contractor individuals, based upon the tasks the particular Contractor individual will be working. The submitted Contractor Staff Roster must indicate the required Background Investigation Level for each Contractor individual based upon the tasks the Contractor individual will be working, in accordance with their submitted proposal.

6.2.2 CONTRACTOR PERSONNEL SECURITY REQUIREMENTS

Contractor Responsibilities:

- a. The Contractor shall prescreen all personnel requiring access to the computer systems to ensure they maintain the appropriate Background Investigation, and are able to read, write, speak, and understand the English language.
- b. Within 3 business days after award, the Contractor shall provide a roster of Contractor and Subcontractor employees to the COR to begin their background investigations in accordance with the PAL template artifact. The Contractor Staff Roster shall contain the Contractor's Full Name, Date of Birth, Place of Birth, individual background investigation level requirement

- (based upon Section 6.2.1 Tasks), etc. The Contractor shall submit full Social Security Numbers either within the Contractor Staff Roster or under separate cover to the COR. The Contractor Staff Roster shall be updated and provided to VA within 1 day of any changes in employee status, training certification completion status, Background Investigation level status, additions/removal of employees, etc. throughout the Period of Performance. The Contractor Staff Roster shall remain a historical document indicating all past information and the Contractor shall indicate in the Comment field, employees no longer supporting this contract. The preferred method to send the Contractor Staff Roster or Social Security Number is by encrypted e-mail. If unable to send encrypted e-mail, other methods which comply with FIPS 140-2 (or its successor) are to encrypt the file, use a secure fax, or use a traceable mail service. (Note that by September 22, 2026, all FIPS 140-2 certificate validations will be placed on the Historical List. See FIPS Transition Effort Timeline for more details: <https://csrc.nist.gov/projects/fips-140-3-transition-effort#schedule>)
- c. The Contractor should coordinate with the location of the nearest VA fingerprinting office through the COR. Only electronic fingerprints are authorized. The Contractor shall bring their completed Personnel Security Adjudication Center (PSAC) Fingerprint request form with them (see paragraph d.4. below) when getting fingerprints taken.
 - d. The Contractor shall ensure the following required forms are submitted to the COR within 5 days after contract award:
 - 1) Optional Form 306
 - 2) Self-Certification of Continuous Service
 - 3) VA Form 0710
 - 4) Completed PSAC Fingerprint Request Form
 - e. The Contractor personnel shall submit all required information related to their background investigations (completion of the investigation documents (SF85, SF85P, or SF 86) utilizing the Defense Counterintelligence and Security Agency (DCSA) National Background Investigation Services (NBIS) Electronic Application (eAPP) (formerly e-QIP) after receiving an email notification from the PSAC.
 - f. The Contractor employee shall certify and release the eAPP document, print, and sign the signature pages, and send them encrypted to the COR for electronic submission to the PSAC. These documents shall be submitted to the COR within 3 business days of receipt of the eAPP notification email. (Note: DCSA is moving towards a “click to sign” process. If click to sign is used, the Contractor employee should notify the COR within 3 business days that documents were signed via eAPP).
 - g. The Contractor shall be responsible for the actions of all personnel provided to work for VA under this contract. In the event that damages arise from work performed by Contractor provided personnel, under the auspices of this contract, the Contractor shall be responsible for all resources necessary to remedy the incident.
 - h. A Contractor may be granted unescorted access to VA facilities and/or access to VA Information Technology resources (network and/or protected data) with a favorably adjudicated Special Agreement Check (SAC), completed training delineated in VA Handbook 6500.6 (Appendix C, Section

- 4), signed "Contractor Rules of Behavior", and with a valid, operational Personal Identity Verification (PIV) credential for PIV-only logical access to VA's network. A PIV card credential can be issued once your SAC has been favorably adjudicated and your background investigation has been scheduled by DCSA. However, the Contractor will be responsible for the actions of the Contractor personnel they provide to perform work for VA. The investigative history for Contractor personnel working under this contract must be maintained in the database of DCSA.
- i. The Contractor, when notified of an unfavorably adjudicated background investigation on a Contractor employee as determined by the Government, shall withdraw the employee from consideration in working under the contract.
 - j. Failure to comply with the Contractor personnel security investigative requirements may result in loss of physical and/or logical access to VA facilities and systems by Contractor and Subcontractor employees and/or termination of the contract for default.
 - k. PIV Credential Holders must follow all HSPD-12 policies and procedures as well as use and protect their assigned identity credentials in accordance with VA policies and procedures, displaying their badges at all times, and returning the identity credentials upon termination of their relationship with VA.

Deliverable:

- A. Contractor Staff Roster

6.3 METHOD AND DISTRIBUTION OF DELIVERABLES

The Contractor shall deliver documentation in electronic format, unless otherwise directed in Section B of the solicitation/contract. Acceptable electronic media include: Microsoft 365 suite, MS Word, MS Excel, MS PowerPoint, MS Project, MS Access, MS Visio, AutoCAD, and Adobe Postscript Data Format (PDF).

6.4 PERFORMANCE METRICS

The table below defines the Performance Standards and Acceptable Levels of Performance associated with this effort.

Performance Objective	Performance Standard	Acceptable Levels of Performance
A. Technical / Quality of Product or Service	1. Demonstrates understanding of requirements 2. Efficient and effective in meeting requirements 3. Meets technical needs and mission requirements 4. Provides quality services/products	Satisfactory or higher
B. Project Milestones and Schedule	1. Established milestones and project dates are met 2. Products completed, reviewed, delivered in accordance with the established schedule 3. Notifies customer in advance of potential problems	Satisfactory or higher
C. Cost & Staffing	1. Currency of expertise and staffing levels appropriate to perform tasks required 2. Personnel possess necessary knowledge, skills, and abilities to perform tasks	Satisfactory or higher
D. Management	1. Integration and coordination of all activities to execute effort	Satisfactory or higher

The COR will utilize a Quality Assurance Surveillance Plan (QASP) throughout the life of the contract to ensure that the Contractor is performing the services required by this PWS in an acceptable level of performance. The Government reserves the right to alter or change the surveillance methods in the QASP at its own discretion. A Performance Based Service Assessment will be used by the COR in accordance with the QASP to assess Contractor performance.

6.5 FACILITY/RESOURCE PROVISIONS

The Government will provide office space, telephone service and system access when authorized contract staff work at a Government location as required in order to accomplish the Tasks associated with this PWS. All procedural guides, reference materials, and program documentation for the project and other Government applications will also be provided on an as-needed basis.

The Contractor shall request other Government documentation deemed pertinent to the work accomplishment directly from the Government officials with whom the Contractor has contact. The Contractor shall consider the COR as the final source for needed Government documentation when the Contractor fails to secure the documents by other

means. The Contractor is expected to use common knowledge and resourcefulness in securing all other reference materials, standard industry publications, and related materials that are pertinent to the work.

VA may provide remote access to VA specific systems/network in accordance with VA Handbook 6500, which requires the use of a VA approved method to connect external equipment/systems to VA's network. Citrix Access Gateway (CAG) and now the Azure Virtual Desktop (AVD) (as VA is currently transitioning from CAG to the AVD), are the current and only VA approved methods for remote access users when using or manipulating VA information for official VA Business. VA permits CAG remote access through approved Personally Owned Equipment (POE) and Other Equipment (OE) provided the equipment meets all applicable 6500 Handbook requirements for POE/OE. All of the security controls required for Government furnished equipment (GFE) must be utilized in approved POE or OE. The Contractor shall provide proof to the COR for review and approval that their POE or OE meets the VA Handbook 6500 requirements and VA Handbook 6500.6 Appendix C, herein incorporated as Addendum B, before use. CAG authorized users shall not be permitted to copy, print, or save any VA information accessed via CAG at any time. VA prohibits remote access to VA's network from non-North Atlantic Treaty Organization (NATO) countries. The exception to this are countries where VA has approved operations established (e.g. Philippines and South Korea). Exceptions are determined by the COR in coordination with the Information System Security Officer (ISSO) and Privacy Officer (PO).

This remote access may provide access to VA specific software such as Veterans Health Information System and Technology Architecture (VistA), ClearQuest, PAL, Primavera, and Remedy, including appropriate seat management and user licenses, depending upon the level of access granted. The Contractor shall utilize government-provided software development and test accounts, documents, and requirements repositories, etc. as required for the development, storage, maintenance, and delivery of products within the scope of this effort. All VA sensitive information shall be protected at all times in accordance with VA Handbook 6500, local security field office System Security Plans (SSP's) and Authority to Operate (ATO)'s for all systems/LAN's accessed while performing the tasks detailed in this PWS. The Contractor shall ensure all work is performed in countries deemed not to pose a significant security risk. For detailed Security and Privacy Requirements (additional requirements of the contract consolidated into an addendum for easy reference) refer to **Error! Not a valid bookmark self-reference.** and ADDENDUM B - VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE.

6.6 GOVERNMENT FURNISHED PROPERTY

The Government has multiple remote access solutions available to include CAG, AVD, Site-to-Site Virtual Private Network (VPN), and RESCUE VPN.

The Government's issuance of Government Furnished Equipment (GFE) is limited to Contractor personnel requiring direct access to the network to: development environments; install, configure and run Technical Reference Model (TRM) approved software and tools (e.g., Oracle, Fortify, Eclipse, SoapUI, WebLogic, LoadRunner);

upload/download/ manipulate code, run scripts, and apply patches; configure and change system settings; check logs, troubleshoot/debug, and test/QA.

When necessary, the Government will furnish desktops or laptops, for use by the Contractor to access VA networks, systems, or applications to meet the requirements of this PWS. The overarching goal is to determine the most cost-effective approach to providing needed access to the VA environment coupled with the need to ensure proper Change Management principles are followed. Contractor personnel shall adhere to all VA system access requirements for on-site and remote users in accordance with VA standards, local security regulations, policies, and rules of behavior. GFE shall be approved by the COR and Program Manager on a case-by-case basis prior to issuance.

Based upon the Government assessment of remote access solutions and requirements of this effort, the Government estimates that the following GFE will be required by this effort:

1. One laptop

The Government will not provide IT accessories including but not limited to Mobile Wi-Fi hotspots/wireless access points, additional or specialized keyboards or mice, laptop bags, extra charging cables, extra Personal Identity Verification card readers, peripheral devices, or additional Random Access Memory (RAM). The Contractor is responsible for providing these types of IT accessories in support of this effort as necessary and any VA installation required for these IT accessories shall be coordinated with the COR.

Additionally, the Contractor shall provide a status of all reportable GFE as part of the Monthly Status Report as required by PWS paragraph 5.1. For purposes of this report, reportable GFE includes equipment that is furnished by the Government as tangible "personal" property which the Contractor takes possession of, physically leaves a Government facility, and needs to be returned the end of Contractor performance. The following information shall be provided for each piece of GFE:

1. Name of Contractor employee assigned to the GFE
2. Type of Equipment (Make and Model)
3. Tracking Number/Serial Number
4. VA Bar Code
5. Location
6. Value
7. Total Value of Equipment
8. Anticipated Transfer Date to Government
9. Anticipated Transfer Location

6.7 SHIPMENT OF HARDWARE OR EQUIPMENT

Inspection: Destination

Acceptance: Destination

Free on Board (FOB): Destination

Ship To and Mark For: See Attachment A for site locations

Special Shipping Instructions:

Prior to shipping, Contractor shall notify Site POCs, by phone followed by email, of all incoming deliveries including line-by-line details for review of requirements. Contractor shall not make any changes to the delivery schedule at the request of Site POC.

Contractors shall coordinate deliveries with Site POCs before shipment of MFDs and server hardware to ensure sites have adequate storage space.

All shipments, either single or multiple container deliveries, shall bear the VA Integrated Funds Distribution, Control Point Activity, Accounting and Procurement (IFCAP) Purchase Order (PO) number (if applicable) on external shipping labels and associated manifests or packing lists. In the case of multiple container deliveries, a statement readable near the VA IFCAP PO or Contract number shall indicate total number of containers for the complete shipment (e.g. "Package 1 of 2"), clearly readable on manifests and external shipping labels.

Packing Slips/Labels and Lists shall also include the following:

IFCAP PO # or Contract No.: ____TBD____ (e.g., 166-E11234 (the IFCAP PO number is located in block #20 of the Standard Form, SF 1449))

Project Description: (e.g. Tier I Lifecycle Refresh)

Total number of Containers: Package ____ of _____. (e.g., Package 1 of 3)

ADDENDUM A – ADDITIONAL VA REQUIREMENTS, CONSOLIDATED

A1.0 Cyber and Information Security Requirements for VA IT Services

The Contractor shall ensure adequate LAN/Internet, data, information, and system security in accordance with VA standard operating procedures and standard PWS language, conditions, laws, and regulations. The Contractor's firewall and web server shall meet or exceed VA minimum requirements for security. All VA data shall be protected behind an approved firewall. Any security violations or attempted violations shall be reported to the VA Program Manager and VA Information Security Officer as soon as possible. The Contractor shall follow all applicable VA policies and procedures governing information security, especially those that pertain to A&A and continuous monitoring.

Contractor supplied equipment, PCs of all types, equipment with hard drives, etc. for contract services must meet all security requirements that apply to Government Furnished Equipment (GFE) and Government Owned Equipment (GOE). Security Requirements include: a) VA Approved Encryption Software must be installed on all laptops or mobile devices before being placed into operation, b) Bluetooth equipped devices are prohibited within VA; Bluetooth must be permanently disabled or removed from the device, unless the connection uses FIPS 140-2 (or its successor) validated encryption, c) VA approved anti-virus and firewall software, d) Equipment must meet all VA sanitization requirements and procedures before disposal. The Contractor shall notify the COR/CO within one hour of disclosure or successful exploits of any vulnerability which can compromise the confidentiality, integrity, or availability of the information systems.

Each documented initiative under this contract incorporates VA Handbook 6500.6, "Contract Security," March 12, 2010 (Appendix C updated April 22, 2024) by reference as though fully set forth therein. The VA Handbook 6500.6, "Contract Security" shall also be included in every related agreement, contract, or order. The VA Handbook 6500.6, Appendix C, is included in this document as Addendum B.

Training requirements: The Contractor shall complete all mandatory training courses on the current VA training site, the VA Talent Management System (TMS) 2.0, and will be tracked therein. The TMS 2.0 may be accessed at <https://www.tms.va.gov/SecureAuth35/>. If you do not have a TMS 2.0 profile, go to <https://www.tms.va.gov/SecureAuth35/> and click on the "Create New User" link on the TMS 2.0 to gain access.

Contractor employees shall complete a VA Systems Access Agreement if they are provided access privileges as an authorized user of the computer system of VA.

A2.0 VA Enterprise Architecture Compliance

The applications, supplies, and services furnished under this contract must comply with VA Enterprise Architecture (EA), available at <http://www.ea.oit.va.gov/index.asp> in force at the time of issuance of this contract, including the Program Management Plan and VA's rules, standards, and guidelines in the Technical Reference Model/Standards

Profile (TRMSP). VA reserves the right to assess contract deliverables for EA compliance prior to acceptance.

A2.1 VA Internet and Intranet Standards

The Contractor shall adhere to and comply with VA Directive 6102 and VA's Web Governance if the Contractor's work includes building and maintaining VA's digital presence. This pertains, but is not limited to: websites, social media, creating announcements; collecting information; databases to be accessed, graphics and links to external sites.

Internet/Intranet Services Directive 6102 is posted at (copy and paste the following URL to browser): https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=1056&FType=2

VA Web Governance website can be found at [Home - VA Web Governance](#).

A3.0 Notice of the Federal Accessibility Law Affecting All Information and Communication Technology (ICT) Procurements (Section 508)

On January 18, 2017, the Access Board issued a final rule that updated accessibility requirements covered by Section 508 and refreshed guidelines for telecommunications equipment subject to Section 255 of the Communications Act. The final rule went into effect on January 18, 2018. The revisions and updates to the Section 508-based standards and Section 255-based guidelines are intended to ensure that information and communication technology (ICT) covered by the respective statutes is accessible to and usable by individuals with disabilities.

A3.1 Section 508 – Information and Communication Technology (ICT) Standards

The Section 508 standards established by the Access Board are incorporated into, and made part of all VA orders, solicitations and purchase orders developed to procure ICT. These standards are found in their entirety at: [Revised 508 Standards and 255 Guidelines \(access-board.gov\)](#). A single PDF file version of the Revised Section 508 Standards and 255 Guidelines will be supplied upon request, or can be obtained from the Access Board website. Federal agencies must comply with the Rehabilitation Act of 1973, as amended.

The Contractor shall comply with "508 Chapter 2: Scoping Requirements" for all electronic ICT and content delivered under this contract. Specifically, as appropriate for the technology and its functionality, the Contractor shall comply with the technical standards marked here:

- ☒ E205 Electronic Content – (Accessibility Standard -WCAG 2.0 Level A and AA Guidelines)
- ☒ E204 Functional Performance Criteria
- ☐ E206 Hardware Requirements
- ☒ E207 Software Requirements
- ☒ E208 Support Documentation and Services Requirements

A3.2 Compatibility with Assistive Technology

The standards do not require installation of specific accessibility-related software or attachment of an assistive technology device. Section 508 requires that ICT be

compatible with such software and devices so that ICT can be accessible to and usable by individuals using assistive technology, including but not limited to screen readers, screen magnifiers, and speech recognition software.

A3.3 Acceptance and Acceptance Testing

Deliverables resulting from this solicitation will be accepted based in part on satisfaction of the Section 508 Chapter 2: Scoping Requirements standards identified above.

The Government reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon delivery.

A4.0 Physical Security & Safety Requirements:

The Contractor and their personnel shall follow all VA policies, standard operating procedures, applicable laws and regulations while on VA property. Violations of VA regulations and policies may result in citation and disciplinary measures for persons violating the law.

1. The Contractor and their personnel shall wear visible identification at all times while they are on the premises.
2. VA does not provide parking spaces at the work site; the Contractor must obtain parking at the work site if needed. It is the responsibility of the Contractor to park in the appropriate designated parking areas. VA will not invalidate or make reimbursement for parking violations of the Contractor under any conditions.
3. Smoking is prohibited inside/outside any building other than the designated smoking areas.
4. Possession of weapons is prohibited.
5. The Contractor shall obtain all necessary licenses and/or permits required to perform the work, with the exception of software licenses that need to be procured from a Contractor or vendor in accordance with the requirements document. The Contractor shall take all reasonable precautions necessary to protect persons and property from injury or damage during the performance of this contract.

A5.0 Confidentiality and Non-Disclosure

The Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations.

The Contractor may have access to Protected Health Information (PHI) and Electronic Protected Health Information (ePHI) that is subject to protection under the regulations issued by the Department of Health and Human Services, as mandated by the Health Insurance Portability and Accountability Act of 1996 (HIPAA); 45 CFR Parts 160 and 164, Subparts A and E, the Standards for Privacy of Individually Identifiable Health Information ("Privacy Rule"); and 45 CFR Parts 160 and 164, Subparts A and C, the Security Standard ("Security Rule"). Pursuant to the Privacy and Security Rules, the Contractor must agree in writing to certain mandatory provisions regarding the use and disclosure of PHI and ePHI.

1. The Contractor will have access to some privileged and confidential materials of VA. These printed and electronic documents are for internal use only, are not to be copied or released without permission, and remain the sole property of

VA. Some of these materials are protected by the Privacy Act of 1974 (revised by PL 93-5791) and Title 38. Unauthorized disclosure of Privacy Act or Title 38 covered materials is a criminal offense.

2. The VA CO will be the sole authorized official to release in writing, any data, draft deliverables, final deliverables, or any other written or printed materials pertaining to this contract. The Contractor shall release no information. Any request for information relating to this contract presented to the Contractor shall be submitted to the VA CO for response.
3. Contractor personnel recognize that in the performance of this effort, Contractor personnel may receive or have access to sensitive information, including information provided on a proprietary basis by carriers, equipment manufacturers and other private or public entities. Contractor personnel agree to safeguard such information and use the information exclusively in the performance of this contract. Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations as enumerated in this section and elsewhere in this Contract and its subparts and appendices.
4. Contractor shall limit access to the minimum number of personnel necessary for contract performance for all information considered sensitive or proprietary in nature. If the Contractor is uncertain of the sensitivity of any information obtained during the performance this contract, the Contractor has a responsibility to ask the VA CO.
5. Contractor shall train all of their employees involved in the performance of this contract on their roles and responsibilities for proper handling and nondisclosure of sensitive VA or proprietary information. Contractor personnel shall not engage in any other action, venture or employment wherein sensitive information shall be used for the profit of any party other than those furnishing the information. The sensitive information transferred, generated, transmitted, or stored herein is for VA benefit and ownership alone.
6. Contractor shall maintain physical security at all facilities housing the activities performed under this contract, including any Contractor facilities according to VA-approved guidelines and directives. The Contractor shall ensure that security procedures are defined and enforced to ensure all personnel who are provided access to patient data must comply with published procedures to protect the privacy and confidentiality of such information as required by VA.
7. Contractor must adhere to the following:
 - a. The use of "thumb drives" or any other medium for transport of information is expressly prohibited.
 - b. Controlled access to system and security software and documentation.
 - c. Recording, monitoring, and control of passwords and privileges.
 - d. All terminated personnel are denied physical and electronic access to all data, program listings, data processing equipment and systems.
 - e. VA, as well as any Contractor (or Subcontractor) systems used to support development, provide the capability to cancel immediately all access privileges and authorizations upon employee termination.
 - f. Contractor PM and VA PM are informed within twenty-four (24) hours of any employee termination.
 - g. Acquisition sensitive information shall be marked "Acquisition Sensitive" and shall be handled as "For Official Use Only (FOUO)".

- h. Contractor does not require access to classified data.
- 8. Regulatory standard of conduct governs all personnel directly and indirectly involved in procurements. All personnel engaged in procurement and related activities shall conduct business in a manner above reproach and, except as authorized by statute or regulation, with complete impartiality and with preferential treatment for none. The general rule is to strictly avoid any conflict of interest or even the appearance of a conflict of interest in VA/Contractor relationships.
- 9. VA Form 0752 shall be completed by all Contractor employees working on this contract and shall be provided to the CO before any work is performed. In the case that Contractor personnel are replaced in the future, their replacements shall complete VA Form 0752 prior to beginning work.

A6.0 Information Technology Using Sustainable Products and Services

The Contractor shall comply with Sections 524 and Sections 525 of the Energy Independence and Security Act of 2007; Section 104 of the Energy Policy Act of 2005; Executive Order 14148, "Initial Rescissions of Harmful Executive Orders and Actions," dated January 20, 2025; Executive Order 13221, "Energy-Efficient Standby Power Devices," dated August 2, 2001; and the Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) to provide ENERGY STAR® certified and Federal Energy Management Program (FEMP) Designated Low Standby Power information technology products, see <https://www.energy.gov/femp/search-energy-efficient-products>. See <http://www.energystar.gov> for complete product specifications and updated lists of Energy Star certified products. FEMP low standby power product listing can be found at <https://www.energy.gov/femp/low-standby-power-product-list>.

The Contractor shall provide products that meet the definition of sustainable products if the products are delivered to the Government; furnished by the Contractor for use by the Government, incorporated into the construction of a public building or public work, or acquired by the Contractor for use in performing services under a Government contract where the cost of the products is a direct cost to a Government contract (versus costs which are normally applied to a contractor's general and administrative expenses or indirect costs).

Specifically, the Contractor shall provide sustainable products under this contract in accordance with RFO 52.223-23 (NOV 2025). The applicable products with their associated certification and/or designation required (e.g. Energy Star, FEMP Low Standby Power) are identified within the product requirements specifications in this PWS. The Contractor shall self-certify that its proposed products meet the certification(s) and/or designation(s) specified.

ADDENDUM B – VA INFORMATION AND INFORMATION SYSTEM SECURITY/ PRIVACY LANGUAGE

NOTE: In the event of a conflict, VAAR Security Clauses take precedence over the language in this Addendum B.

APPLICABLE SECTIONS FROM: VA NOTICE 24-12, APRIL 22, 2024, UPDATE TO VA HANDBOOK 6500.6, CONTRACT SECURITY, APPENDIX C VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE, FOR INCLUSION INTO CONTRACTS, AS APPROPRIATE

B.1 GENERAL.

This entire section applies to all acquisitions requiring any Information Security and Privacy language. Contractors, contractor personnel, subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.

B.2 VA INFORMATION CUSTODIAL LANGUAGE.

- a. The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*. The primary clause used to define computer software license (not data/intellectual property first produced under this contract or order) is FAR 52.227-19, *Commercial Computer Software License*.
- b. Information made available to the contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*.
- c. VA information will not be co-mingled with any other data on the contractor’s information systems or media storage systems. The contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.
- d. VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to contractor and subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

- e. The contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.
- f. The contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.
- g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.
- h. The contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.
- i. The contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.
- j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.
- k. Notwithstanding the provision above, the contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality- assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the contractor is in receipt of a court order or other requests for the above- mentioned information, the contractor shall immediately refer such court order or other requests to the VA CO for response.
- l. Information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management

(IAM) Security processes specified in the VA Information Security Knowledge Service.

- m. Any data destruction done on behalf of VA by a contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.
- n. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, *Guidelines for Media Sanitization* prior to termination or completion of this contract. If directed by the COR/CO, the contractor shall return all Federal Records to VA for disposition.
- o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.
- p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

B3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS.

- a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees and subcontractors only to the extent necessary to perform the services specified in the solicitation or contract. This includes indirect entities, both affiliate of contractor/subcontractor and agent of contractor/subcontractor.
- b. Contractors and subcontractors shall sign the VA Information Security Rule of Behavior (ROB) before access is provided to VA information and information systems (see Section 4, Training, below). The ROB contains the minimum user compliance requirements and does not supersede any policies of VA facilities or other agency components which provide higher levels of protection to VA's information or information systems. Users who require privileged access shall complete the VA elevated privilege access request processes before privileged access is granted.
- c. All contractors and subcontractors working with VA information are subject to the same security investigative and clearance requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors shall be in accordance with VA Directive and Handbook 0710,

Personnel Suitability and Security Program. The Office of Human Resources and Administration/Operations, Security and Preparedness (HRA/OSP) is responsible for these policies and procedures. Contract personnel who require access to classified information or information systems shall have an appropriate security clearance. Verification of a Security Clearance shall be processed through the Special Security Officer located in HRA/OSP. Contractors shall conform to all requirements stated in the National Industrial Security Program Operating Manual (NISPOM).

- d. All contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All contractors and subcontractors working with VA information must be permanently located within a jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the contractor must state where all non-U.S. services are provided. The contractor shall deliver to VA a detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.
- e. The contractor shall notify the COR/CO in writing immediately (no later than 24 hours) after personnel separation or occurrence of other causes. Causes may include the following:
 - (1) Contractor/subcontractor personnel no longer has a need for access to VA information or VA information systems.
 - (2) Contractor/subcontractor personnel are terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.
 - (3) Contractor believes their own personnel or subcontractor personnel may pose a threat to their company's working environment or to any company-owned property. This includes contractor-owned assets, buildings, confidential data, customers, employees, networks, systems, trade secrets and/or VA data.
 - (4) Any previously undisclosed changes to contractor/subcontractor background history are brought to light, including but not limited to changes to background investigation or employee record.
 - (5) Contractor/subcontractor personnel have their authorization to work in the United States revoked.
 - (6) Agreement by which contractor provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and/or physical access for contractor personnel.
- f. In such cases of contract fulfillment, termination, or other causes; the contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by contractor/subcontractor personnel. These measures include (but are not limited to): removing and then securing Personal Identity Verification (PIV) badges and PIV – Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA-issued

laptops, and authentication tokens. Contractors shall notify the appropriate VA COR/CO immediately to initiate access removal.

- g. Contractors/subcontractors who no longer require VA accesses will return VA- issued property to VA. This property includes (but is not limited to): documents, electronic equipment, keys, and parking passes. PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, contractors shall notify the appropriate VA COR/CO.

B4. TRAINING.

- a. All contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:
 - (1) VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.
 - (2) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and
 - (3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role- based information security training].
- b. The contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.
- c. Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

B5. SECURITY INCIDENT INVESTIGATION.

- a. The contractor, subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the contractor, subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD.
- b. To the extent known by the contractor/subcontractor, the contractor/subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:
 - (1) The date and time (or approximation of) the Security Incident occurred.
 - (2) The names of individuals involved (when applicable).
 - (3) The physical and logical (if applicable) location of the incident.

- (4) Why the Security Incident took place (i.e., catalyst for the failure).
 - (5) The amount of data belonging to VA believed to have been compromised.
 - (6) The remediation measures the contractor is taking to ensure no future incidents of a similar nature.
- c. After the contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The contractor, subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.
- d. VA IT contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.
- e. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.
- f. The contractor shall comply with VA Handbook 6500.2, *Management of Breaches Involving Sensitive Personal Information*, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.
- g. With respect to unsecured Protected Health Information (PHI), the contractor is deemed to have discovered a data breach when the contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.
- h. If the contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the contractor/subcontractor processes or maintains under the contract; the contractor shall pay liquidated damages to the VA as set forth in clause 852.211-76, Liquidated Damages— Reimbursement for Data Breach Costs.

B6. INFORMATION SYSTEM DESIGN AND DEVELOPMENT.

- a. Information systems designed or developed on behalf of VA at non-VA facilities shall comply with all applicable Federal law, regulations, and VA policies. This includes standards for the protection of electronic Protected

Health Information (PHI), outlined in 45 C.F.R. Part 164, Subpart C and information and system security categorization level designations in accordance with FIPS 199, Standards for Security Categorization of Federal Information and Information Systems and FIPS 200, Minimum Security Requirements for Federal Information Systems. Baseline security controls shall be implemented commensurate with the FIPS 199 system security categorization (reference VA Handbook 6500 and VA Trusted Internet Connections (TIC) Architecture).

- b. Contracted new developments require creation, testing, evaluation, and authorization in compliance with VA Assessment and Authorization (A&A) processes in VA Handbook 6500 and VA Information Security Knowledge Service to obtain an Authority To Operate (ATO). VA Directive 6517, Risk Management Framework for Cloud Computing Services, provides the security and privacy requirements for cloud environments.
- c. VA IT contractors, subcontractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500, VA Handbook 6517, *Risk Management Framework for Cloud Computing Services* and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the contractor shall work through the COR/CO to identify the VA organization responsible for governance or resolution. Contractors shall comply with FAR 39.1, specifically the prohibitions referenced.
- d. The contractor (including producers and resellers) shall comply with Office of Management and Budget (OMB) M-22-18 and M-23-16 when using third-party software on VA information systems or otherwise affecting the VA information. This includes new software purchases and software renewals for software developed or modified by major version change after the issuance date of M-22-18 (September 14, 2022). The term "software" includes firmware, operating systems, applications and application services (e.g., cloud-based software), as well as products containing software. The contractor shall provide a self-attestation that secure software development practices are utilized as outlined by Executive Order (EO) 14028 and NIST Guidance. A third-party assessment provided by either a certified Federal Risk and Authorization Management Program (FedRAMP) Third Party Assessor Organization (3PAO) or one approved by the agency will be acceptable in lieu of a software producer's self-attestation.
- e. The contractor shall ensure all delivered applications, systems and information systems are compliant with Homeland Security Presidential Directive (HSPD) 12 and VA Identity and Access management (IAM) enterprise identity management requirements as set forth in OMB M-19-17, M-05-24, FIPS 201-3, Personal Identity Verification (PIV) of Federal Employees and Contractors (or its successor), M-21-31 and supporting NIST guidance. This applies to COTS product(s) that the contractor did not develop, all software configurations and all customizations.
- f. The contractor shall ensure all contractor delivered applications and systems provide user authentication services compliant with VA Handbook 6500, VA Information Security Knowledge Service, IAM enterprise requirements and NIST 800-63, Digital Identity Guidelines, for direct,

assertion-based authentication and/or trust-based authentication, as determined by the design and integration patterns. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV and/or Common Access Card (CAC), as determined by the business need and compliance with VA Information Security Knowledge Service specifications.

- g. The contractor shall use VA authorized technical security baseline configurations and certify to the COR that applications are fully functional and operate correctly as intended on systems in compliance with VA baselines prior to acceptance or connection into an authorized VA computing environment. If the Defense Information Systems Agency (DISA) has created a Security Technical Implementation Guide (STIG) for the technology, the contractor may configure to comply with that STIG. If VA determines a new or updated VA configuration baseline needs to be created, the contractor shall provide required technical support to develop the configuration settings. FAR 39.1 requires the population of operating systems and applications includes all listed on the NIST National Checklist Program Checklist Repository.
- h. The standard installation, operation, maintenance, updating and patching of software shall not alter the configuration settings from VA approved baseline configuration. Software developed for VA must be compatible with VA enterprise installer services and install to the default "program files" directory with silently install and uninstall. The contractor shall perform testing of all updates and patching prior to implementation on VA systems.
- i. Applications designed for normal end users will run in the standard user context without elevated system administration privileges.
- j. The contractor-delivered solutions shall reside on VA approved operating systems. Exceptions to this will only be granted with the written approval of the COR/CO.
- k. The contractor shall design, develop, and implement security and privacy controls in accordance with the provisions of VA security system development life cycle outlined in NIST 800-37, Risk Management Framework for Information Systems and Organizations: A System Life Cycle Approach for Security and Privacy, VA Directive and Handbook 6500, and VA Handbook 6517.
- l. The Contractor shall comply with the Privacy Act of 1974 (the Act), FAR 52.224- 2 Privacy Act, and VA rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish a VA function.
- m. The contractor shall ensure the security of all procured or developed information systems, systems, major applications, minor applications, enclaves and platform information technologies, including their subcomponents (hereinafter referred to as "Information Systems") throughout the life of this contract and any extension, warranty, or maintenance periods. This includes security configurations, workarounds, patches, hotfixes, upgrades, replacements and any physical components which may be necessary to remediate all security vulnerabilities published or known to the contractor anywhere in the information systems (including systems, operating systems, products, hardware, software, applications and

firmware). The contractor shall ensure security fixes do not negatively impact the Information Systems.

- n. When the contractor is responsible for operations or maintenance of the systems, the contractor shall apply the security fixes within the timeframe specified by the associated controls on the VA Information Security Knowledge Service. When security fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the contractor shall provide written notice to the VA COR/CO that the patch has been validated as to not affecting the Systems within 10 business days.

B7. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE OR USE.

- a. The contractor shall comply with all Federal laws, regulations, and VA policies for Information systems (cloud and non-cloud) that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities. Security controls for collecting, processing, transmitting, and storing of VA sensitive information, must be in place. The controls will be tested by VA or a VA sanctioned 3PAO and approved by VA prior to hosting, operation, maintenance or use of the information system or systems by or on behalf of VA. This includes conducting compliance risk assessments, security architecture analysis, routine vulnerability scanning, system patching, change management procedures and the completion of an acceptable contingency plan for each system. The contractor's security control procedures shall be the same as procedures used to secure VA-operated information systems.
- b. Outsourcing (contractor facility, equipment, or staff) of systems or network operations, telecommunications services or other managed services require Assessment and Authorization (A&A) of the contractor's systems in accordance with VA Handbook 6500 as specified in VA Information Security Knowledge Service. Major changes to the A&A package may require reviewing and updating all the documentation associated with the change. The contractor's cloud computing systems shall comply with FedRAMP and VA Directive 6517 requirements.
- c. The contractor shall return all electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) on non-VA leased or non-VA owned IT equipment used to store, process or access VA information to VA in accordance with A&A package requirements. This applies when the contract is terminated or completed and prior to disposal of media. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Information Security Knowledge Service requirements and NIST 800-88. The contractor shall send a self-certification that the data destruction requirements above have been met to the COR/CO within 30 business days of termination of the contract.
- d. All external internet connections to VA network involving VA information must be in accordance with VA Trusted Internet Connection (TIC) Reference Architecture and VA Directive and Handbook 6513, Secure External Connections and reviewed and approved by VA prior to implementation. Government-owned contractor-operated systems, third party or business partner networks require a Memorandum of Understanding (MOU) and Interconnection Security Agreements (ISA).

- e. Contractor procedures shall be subject to periodic, announced, or unannounced assessments by VA officials, the OIG or a 3PAO. The physical security aspects associated with contractor activities are also subject to such assessments. The contractor shall report, in writing, any deficiencies noted during the above assessment to the VA COR/CO. The contractor shall use VA's defined processes to document planned remedial actions that address identified deficiencies in information security policies, procedures, and practices. The contractor shall correct security deficiencies within the timeframes specified in the VA Information Security Knowledge Service.
- f. All major information system changes which occur in the production environment shall be reviewed by the VA to determine the impact on privacy and security of the system. Based on the review results, updates to the Authority To Operate (ATO) documentation and parameters may be required to remain in compliance with VA Handbook 6500 and VA Information Security Knowledge Service requirements.
- g. The contractor shall conduct an annual privacy and security self-assessment on all information systems and outsourced services as required. Copies of the assessment shall be provided to the COR/CO. The VA/Government reserves the right to conduct assessment using government personnel or a third-party if deemed necessary. The contractor shall correct or mitigate any weaknesses discovered during the assessment.
- h. VA prohibits the installation and use of personally owned or contractor-owned equipment or software on VA information systems. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW, PWS, PD or contract. All security controls required for government furnished equipment must be utilized in VA approved Other Equipment (OE). Configuration changes to the contractor OE, must be funded by the owner of the equipment. All remote systems must use a VA-approved antivirus software and a personal (host-based or enclave based) firewall with a VA-approved configuration. The contractor shall ensure software on OE is kept current with all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-virus software and the firewall on the non-VA owned OE. Approved contractor OE will be subject to technical inspection at any time.
- i. The contractor shall notify the COR/CO within one hour of disclosure or successful exploits of any vulnerability which can compromise the confidentiality, integrity, or availability of the information systems. The system or effected component(s) need(s) to be isolated from the network. A forensic analysis needs to be conducted jointly with VA. Such issues will be remediated as quickly as practicable, but in no event longer than the timeframe specified by VA Information Security Knowledge Service. If sensitive personal information is compromised reference VA Handbook 6500.2 and Section 5, Security Incident Investigation.
- j. For cases wherein the contractor discovers material defects or vulnerabilities impacting products and services they provide to VA, the contractor shall develop and implement policies and procedures for disclosure to VA, as well as remediation. The contractor shall, within 30 business days of discovery, document a summary of these vulnerabilities or defects. The documentation will include a description of the potential impact of each vulnerability and

material defect, compensating security controls, mitigations, recommended corrective actions, root cause analysis and/or workarounds (i.e., monitoring). Should there exist any backdoors in the products or services they provide to VA (referring to methods for bypassing computer authentication), the contractor shall provide the VA CO/CO written assurance they have permanently remediated these backdoors.

- k. All other vulnerabilities, including those discovered through routine scans or other assessments, will be remediated based on risk, in accordance with the remediation timelines specified by the VA Information Security Knowledge Service and/or the applicable timeframe mandated by Cybersecurity & Infrastructure Security Agency (CISA) Binding Operational Directive (BOD) 22- 01 and BOD 19-02 for Internet-accessible systems. Exceptions to this paragraph will only be granted with the approval of the COR/CO.

B8. SECURITY AND PRIVACY CONTROLS COMPLIANCE TESTING, ASSESSMENT AND AUDITING.

- a. Should VA request it, the contractor shall provide a copy of their (corporation's, sole proprietorship's, partnership's, limited liability company (LLC), or other business structure entity's) policies, procedures, evidence and independent report summaries related to specified cybersecurity frameworks (International Organization for Standardization (ISO), NIST Cybersecurity Framework (CSF), etc.). VA or its third-party/partner designee (if applicable) are further entitled to perform their own audits and security/penetration tests of the contractor's IT or systems and controls, to ascertain whether the contractor is complying with the information security, network or system requirements mandated in the agreement between VA and the contractor.
- b. Any audits or tests of the contractor or third-party designees/partner VA elects to carry out will commence within 30 business days of VA notification. Such audits, tests and assessments may include the following: (a): security/penetration tests which both sides agree will not unduly impact contractor operations; (b): interviews with pertinent stakeholders and practitioners; (c): document review; and (d): technical inspections of networks and systems the contractor uses to destroy, maintain, receive, retain, or use VA information.
- c. As part of these audits, tests and assessments, the contractor shall provide all information requested by VA. This information includes, but is not limited to, the following: equipment lists, network or infrastructure diagrams, relevant policy documents, system logs or details on information systems accessing, transporting, or processing VA data.
- d. The contractor and at its own expense, shall comply with any recommendations resulting from VA audits, inspections and tests. VA further retains the right to view any related security reports the contractor has generated as part of its own security assessment. The contractor shall also notify VA of the existence of any such security reports or other related assessments, upon completion and validation.
- e. VA appointed auditors or other government agency partners may be granted access to such documentation on a need-to-know basis and coordinated through the COR/CO. The contractor shall comply with recommendations

which result from these regulatory assessments on the part of VA regulators and associated government agency partners.

B9. PRODUCT INTEGRITY, AUTHENTICITY, PROVENANCE, ANTI-COUNTERFEIT AND ANTI-TAMPERING.

- a. The contractor shall comply with Code of Federal Regulations (CFR) Title 15 Part 7, "Securing the Information and Communications Technology and Services (ICTS) Supply Chain", which prohibits ICTS Transactions from foreign adversaries. ICTS Transactions are defined as any acquisition, importation, transfer, installation, dealing in or use of any information and communications technology or service, including ongoing activities, such as managed services, data transmission, software updates, repairs or the platforming or data hosting of applications for consumer download.
- b. When contracting terms require the contractor to procure equipment, the contractor shall purchase or acquire the equipment from an Original Equipment Manufacturer (OEM) or an authorized reseller of the OEM. The contractor shall attest that equipment procured from an OEM or authorized reseller or distributor are authentic. If procurement is unavailable from an OEM or authorized reseller, the contractor shall submit in writing, details of the circumstances prohibiting this from happening and procure a product waiver from the VA COR/CO.
- c. All contractors shall establish, implement, and provide documentation for risk management practices for supply chain delivery of hardware, software (to include patches) and firmware provided under this agreement. Documentation will include chain of custody practices, inventory management program, information protection practices, integrity management program for sub-supplier provided components, and replacement parts requests. The contractor shall make spare parts available. All contractor(s) shall specify how digital delivery for procured products, including patches, will be validated and monitored to ensure consistent delivery. The contractor shall apply encryption technology to protect procured products throughout the delivery process.
- d. If a contractor provides software or patches to VA, the contractor shall publish or provide a hash conforming to the FIPS Security Requirements for Cryptographic Modules (FIPS 140-2 or successor).
- e. The contractor shall provide a software bill of materials (SBOM) for procured (to include licensed products) and consist of a list of components and associated metadata which make up the product. SBOMs must be generated in one of the data formats defined in the National Telecommunications and Information Administration (NTIA) report "The Minimum Elements for a Software Bill of Materials (SBOM)."
- f. Contractors shall use or arrange for the use of trusted channels to ship procured products, such as U.S. registered mail and/or tamper-evident packaging for physical deliveries.
- g. Throughout the delivery process, the contractor shall demonstrate a capability for detecting unauthorized access (tampering).
- h. The contractor shall demonstrate chain-of-custody documentation for procured products and require tamper-evident packaging for the delivery of this hardware.

B10. VIRUSES, FIRMWARE AND MALWARE.

- a. The contractor shall execute due diligence to ensure all provided software and patches, including third-party patches, are free of viruses and/or malware before releasing them to or installing them on VA information systems.
- b. The contractor warrants it has no knowledge of and did not insert, any malicious virus and/or malware code into any software or patches provided to VA which could potentially harm or disrupt VA information systems. The contractor shall use due diligence, if supplying third-party software or patches, to ensure the third-party has not inserted any malicious code and/or virus which could damage or disrupt VA information systems.
- c. The contractor shall provide or arrange for the provision of technical justification as to why any "false positive" hit has taken place to ensure their code's supply chain has not been compromised. Justification may be required, but is not limited to, when install files, scripts, firmware, or other contractor-delivered software solutions (including third-party install files, scripts, firmware, or other software) are flagged as malicious, infected, or suspicious by an anti-virus vendor.
- d. The contractor shall not upload (intentionally or negligently) any virus, worm, malware or any harmful or malicious content, component and/or corrupted data/source code (hereinafter "virus or other malware") onto VA computer and information systems and/or networks. If introduced (and this clause is violated), upon written request from the VA CO, the contractor shall:
 - (1) Take all necessary action to correct the incident, to include any and all assistance to VA to eliminate the virus or other malware throughout VA's information networks, computer systems and information systems; and
 - (2) Use commercially reasonable efforts to restore operational efficiency and remediate damages due to data loss or data integrity damage, if the virus or other malware causes a loss of operational efficiency, data loss, or damage to data integrity.

B11. CRYPTOGRAPHIC REQUIREMENT.

- a. The contractor shall document how the cryptographic system supporting the contractor's products and/or services protect the confidentiality, data integrity, authentication and non-repudiation of devices and data flows in the underlying system.
- b. The contractor shall use only approved cryptographic methods as defined in FIPS 140-2 (or its successor) and NIST 800-52 standards when enabling encryption on its products.
- c. The contractor shall provide or arrange for the provision of an automated remote key-establishment method which protects the confidentiality and integrity of the cryptographic keys.
- d. The contractor shall ensure emergency re-keying of all devices can be remotely performed within 30 business days.
- e. The contractor shall provide or arrange for the provision of a method for updating cryptographic primitives or algorithms.

B12. PATCHING GOVERNANCE.

- a. The contractor shall provide documentation detailing the patch management, vulnerability management, mitigation and update processes (to include third-party) prior to the connection of electronic devices, assets or equipment to VA's assets. This documentation will include information regarding the follow:
 - (1) The resources and technical capabilities to sustain the program or process (e.g., how the integrity of a patch is validated by VA); and
 - (2) The approach and capability to remediate newly reported zero-day vulnerabilities for contractor products.
- b. The contractor shall verify and provide documentation all procured products (including third-party applications, hardware, software, operating systems, and firmware) have appropriate updates and patches installed prior to delivery to VA.
- c. The contractor shall provide or arrange the provision of appropriate software and firmware updates to remediate newly discovered vulnerabilities or weaknesses for their products and services within 30 days of discovery. Updates to remediate critical or emergent vulnerabilities will be provided within seven business days of discovery. If updates cannot be made available by contractor within these time periods, the contractor shall submit mitigations, methods of exploit detection and/or workarounds to the COR/CO prior to the above deadlines.
- d. The contractor shall provide or arrange for the provision of appropriate hardware, software and/or firmware updates, when those products, including open-source software, are provided to the VA, to remediate newly discovered vulnerabilities or weaknesses. Remediations of products or services provided to the VA's system environment must be provided within 30 business days of availability from the original supplier and/or patching source. Updates to remediate critical vulnerabilities applicable to the Contractor's use of the third-party product in its system environment will be provided within seven business days of availability from the original supplier and/or patching source. If applicable third-party updates cannot be integrated, tested and made available by Contractor within these time periods, mitigations and/or workarounds will be provided to the COR/CO before the above deadlines.

B13. SPECIALIZED DEVICES/SYSTEMS (MEDICAL DEVICES, SPECIAL PURPOSE SYSTEMS, RESEARCH SCIENTIFIC COMPUTING).

- a. Contractor supplies/delivered Medical Devices, Special Purpose Systems-Operational Technology (SPS-OT) and Research Scientific Computing Devices shall comply with all applicable Federal law, regulations, and VA policies. New developments require creation, testing, evaluation, and authorization in compliance with processes specified on the Specialized Device Cybersecurity Department Enterprise Risk Management (SDCD-ERM) Portal, VA Directive 6550, *Pre-Procurement Assessment and Implementation of Medical Devices/Systems*, VA Handbook 6500, and the VA Information Security Knowledge Service. Deviations from Federal law, regulations, and VA Policy are identified and documented as part of VA

Directive 6550 and/or the VA Enterprise Risk Analysis (ERA) processes for Specialized Devices/Systems processes.

- b. All contractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500 and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the contractor shall work through the COR/CO for governance or resolution.
- c. The contractor shall certify to the COR/CO that devices/systems that have completed the VA Enterprise Risk Analysis (ERA) process for Specialized Devices/Systems are fully functional and operate correctly as intended. Devices/systems must follow the VA ERA authorized configuration prior to acquisition and connection to the VA computing environment. If VA determines a new VA ERA needs to be created, the contractor shall provide required technical support to develop the configuration settings. Major changes to a previously approved device/system will require a new ERA.
- d. The contractor shall comply with all practices documented by the Food Drug and Administration (FDA) Premarket Submission for Management of Cybersecurity in Medical Devices and Postmarket Management of Cybersecurity in Medical Devices.
- e. The contractor shall design devices capable of accepting all applicable security patches with or without the support of the contractor personnel. If patching can only be completed by the contractor, the contractor shall commit the resources needed to patch all applicable devices at all VA locations. If unique patching instructions or packaging is needed, the contractor shall provide the necessary information in conjunction with the validation/testing of the patch. The contractor shall apply security patches within 30 business days of the patch release and have a formal tracking process for any security patches not implemented to include explanation when a device cannot be patched.
- f. The contractor shall provide devices able to install and maintain VA-approved antivirus capabilities with the capability to quarantine files and be updated as needed in response to incidents. Alternatively, a VA-approved whitelisting application may be used when the contractor cannot install an anti-virus / anti- malware application.
- g. The contractor shall verify and document all software embedded within the device does not contain any known viruses or malware before delivery to or installation at a VA location.
- h. Devices and other equipment or systems containing media (hard drives, optical disks, solid state, and storage via chips/firmware) with VA sensitive information will be returned to the contractor with media removed. When the contract requires return of equipment, the options available to the contractor are the following:
 - (1) The contractor shall accept the system without the drive, firmware and solid state.
 - (2) VA's initial device purchase includes a spare drive or other replacement media which must be installed in place of the original drive at time of turn- in; or

- (3) Due to the highly specialized and sometimes proprietary hardware and software associated with the device, if it is not possible for VA to retain the hard drive, firmware, and solid state, then:
 - (a) The equipment contractor shall have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact.
 - (b) Any fixed hard drive, Complementary Metal-Oxide-Semiconductor (CMOS), Programmable Read-Only Memory (PROM), solid state and firmware on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be pre-approved and described in the solicitation, contract, or order.

B14. DATA CENTER PROVISIONS.

- a. The contractor shall ensure the VA network is accessed by in accordance with VA Directive 6500 and IAM security processes specified in the VA Information Security Knowledge Service.
- b. The contractor shall ensure network infrastructure and data availability in accordance with VA information system business continuity procedures specified in the VA Information Security Knowledge Service.
- c. The contractor shall ensure any connections to the internet or other external networks for information systems occur through managed interfaces utilizing VA approved boundary protection devices (e.g., internet proxies, gateways, routers, firewalls, guards or encrypted tunnels).
- d. The contractor shall encrypt all traffic across the segment of the Wide Area Network (WAN) it manages and no unencrypted Out of Band (OOB) Internet Protocol (IP) traffic will traverse the network.
- e. The contractor shall ensure tunnel endpoints are routable addresses at each VA operating site.
- f. The contractor shall secure access from Local Area Networks (LANs) at co-located sites in accordance with VA TIC Reference Architecture, VA Directive and Handbook 6513, and MOU/ISA process specified in the VA Information Security Knowledge Service.

SECTION C - CONTRACT CLAUSES**C.1 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <http://www.acquisition.gov/far/index.html>

VAAR: <http://www.va.gov/oal/library/vaar/vaar852.asp>

Revolutionary FAR Overhaul: <https://www.acquisition.gov/far-overhaul>

FAR/VAAR NUMBER	TITLE	DATE
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT- ALTERNATE I	JUN 2020
52.203-12	LIMITATIONS ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN 2020
52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT	NOV 2021
52.203-17	CONTRACTOR EMPLOYEE WHISTEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	NOV 2025 (DEVIATION)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	NOV 2025 (DEVIATION)
52.204-14	SERVICE CONTRACT REPORTING REQUIREMENTS	NOV 2025 (DEVIATION)
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	NOV 2025 (DEVIATION)
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	NOV 2025 (DEVIATION)
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2025 (DEVIATION)
52.212-4	CONTRACT TERMS AND CONDITIONS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025 (DEVIATION)
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS	NOV 2025 (DEVIATION)
52.219-14	LIMITATIONS OF SUBCONTRACTING	NOV 2025 (DEVIATION)

52.219-27	NOTICE OF SET-ASIDE FOR, OR SOLE-SOURCE AWARD TO, SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) CONCERNS ELIGIBLE UNDER THE SDVOSB PROGRAM	NOV 2025 (DEVIATION)
52.219-28	POST AWARD SMALL BUSINESS PROGRAM REREPRESENTATION	NOV 2025 (DEVIATION)
52.222-3	CONVICT LABOR	NOV 2025 (DEVIATION)
52.222-19	CHILD LABOR —COOPERATION WITH AUTHORITIES AND REMEDIES	NOV 2025 (DEVIATION)
52.222-35	EQUAL OPPORTUNITY FOR VETERANS	NOV 2025 (DEVIATION)
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES	NOV 2025 (DEVIATION)
52.222-37	EMPLOYMENT REPORTS ON VETERANS	NOV 2025 (DEVIATION)
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	NOV 2025 (DEVIATION)
52.222-41	SERVICE CONTRACT LABOR STANDARDS	NOV 2025 (DEVIATION)
52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV 2025 (DEVIATION)
52.222-90	ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS	APR 2026
52.223-23	SUSTAINABLE PRODUCTS AND SERVICES	NOV 2025 (DEVIATION)
52.224-3	PRIVACY TRAINING	JAN 2017
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.227-1	AUTHORIZATION AND CONSENT	JUN 2020
52.227-2	PATENT AND COPYRIGHT INFRINGEMENT	JUN 2020
52.232-33	PAYMENT BY EFT - SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN 2013
52.232-40	ACCELERATED PAYMENTS TO SMALL BUSINESS	MAR 2023
52.233-1	DISPUTES	NOV 2025 (DEVIATION)
52.233-3	PROTEST AFTER AWARD	NOV 2025 (DEVIATION)
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	NOV 2025 (DEVIATION)
52.240-91	SECURITY PROHIBITIONS AND EXCLUSIONS	NOV 2025 (DEVIATION)
52.240-93	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS	NOV 2025 (DEVIATION)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2025 (DEVIATION)

52.245-1	GOVERNMENT PROPERTY	SEP 2021
852.201-70	CONTRACTING OFFICERS REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020
852.212-71	GRAY MARKET AND COUNTERFEIT ITEMS	FEB 2023
852.219-73	VA NOTICE OF TOTAL SET-ASIDE FOR VERIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES	JAN 2023 (DEVIATION)
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899	APR 2025 (DEVIATION)
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.237-75	KEY PERSONNEL	OCT 2019
852.239-70	SECURITY REQUIREMENTS FOR INFORMATION TECHNOLOGY RESOURCES	FEB 2023
852.239-71	INFORMATION SYSTEM SECURITY PLAN AND ACCREDITATION	FEB 2023
852.239-73	INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE OR USE	FEB 2023
852.239-74	SECURITY CONTROLS COMPLIANCE TESTING	FEB 2023
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023
852.246-71	REJECTED GOODS	OCT 2018

(End of Clause)

C.2 VAAR 852.204-71 INFORMATION AND INFORMATION SYSTEMS SECURITY (FEB 2023)

(a) *Definitions.* As used in this clause—

Business Associate means an entity, including an individual (other than a member of the workforce of a covered entity), company, organization or another covered entity, as defined by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) Privacy Rule, that performs or assists in the performance of a function or activity on behalf of the Veterans Health Administration (VHA) that involves the creating, receiving, maintaining, transmitting of, or having access to, protected health information (PHI). The term also includes a subcontractor of a business associate that creates, receives, maintains, or transmits PHI on behalf of the business associate.

Business Associate Agreement (BAA) means the agreement, as dictated by the Privacy Rule, between VHA and a business associate, which must be entered into in addition to the underlying contract for services and before any release of PHI can be made to the business associate, in order for the business associate to perform certain functions or activities on behalf of VHA.

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

Information technology (see [FAR 2.101](#)) also means Information and Communication Technology (ICT).

Information technology-related contracts means those contracts which include services (including support services), and related resources for information technology as defined in [802.101](#).

Privacy officer means the VA official with responsibility for implementing and oversight of privacy related policies and practices that impact a given VA acquisition.

Sensitive personal information means, with respect to an individual, any information about the individual maintained by VA, including but not limited to the following:

(1) Education, financial transactions, medical history, and criminal or employment history.

(2) Information that can be used to distinguish or trace the individual's identity, including but not limited to name, social security number, date and place of birth, mother's maiden name, or biometric records.

Security plan means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements.

VA Information Security Rules of Behavior for Organizational Users (VA National Rules of Behavior) means a set of VA rules that describes the responsibilities and expected behavior of users of VA information or information systems.

VA sensitive information means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs. (b) *General*. Contractors, subcontractors, their employees, third-parties, and business associates with access to VA information, information systems, or information technology (IT) or providing and accessing IT-related goods and services, shall adhere to [VA Directive 6500](#), VA Cybersecurity Program, and the directives and handbooks in the VA 6500 series related to VA information (including VA sensitive information and sensitive personal information and information systems security and privacy), as well as those set forth in the contract specifications, statement of work, or performance work statement. These include, but are not limited to, [VA Handbook 6500.6](#), Contract Security; and VA [Directive](#) and [Handbook](#) 0710, Personnel Security and Suitability Program, which establishes VA's procedures, responsibilities, and processes for complying with current Federal law, Executive Orders, policies, regulations, standards and guidance for protecting VA information, information systems (see [802.101](#), Definitions) security and privacy, and adhering to personnel security requirements when accessing VA information or information systems.

(c) *Access to VA information and VA information systems.* (1) Contractors are limited in their request for logical or physical access to VA information or VA information systems for their employees, subcontractors, third parties and business associates to the extent necessary to perform the services or provide the goods as specified in the contracts, agreements, task, delivery or purchase orders.

(2) All Contractors, subcontractors, third parties, and business associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors to access VA information and VA information systems shall be in accordance with VA [Directive](#) and [Handbook](#) 0710, Personnel Security and Suitability Program.

(3) Contractors, subcontractors, third parties, and business associates who require access to national security programs must have a valid security clearance.

(4) *HIPAA Business Associate Agreement requirement.* Contractors shall enter into a Business Associate Agreement (BAA) with VHA, VA's Covered Entity, when contract requirements and access to protected health information is required and when requested by the Contracting Officer, or the Contracting Officer's Representative (COR) (see [VAAR 824.103-70](#)). Under the HIPAA Privacy and Security Rules, a Covered Entity (VHA) must have a satisfactory assurance that its PHI will be safeguarded from misuse. To do so, a Covered Entity enters into a BAA with a contractor (now the business associate), which obligates the business associate to only use the Covered Entity's PHI for the purposes for which it was engaged, provide the same protections and safeguards as is required from the Covered Entity, and agree to the same disclosure restrictions to PHI that is required of the Covered Entity in situations where a contractor—

(i) Creates, receives, maintains, or transmits VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI in order to perform certain health care operations activities or functions on behalf of the Covered Entity; or

(ii) Provides one or more of the services specified in the Privacy Rule to or for the Covered Entity.

(A) *Contractors or entities required to execute BAAs for contracts and other agreements become VHA business associates.* BAAs are issued by VHA or may be issued by other VA programs in support of VHA. The HIPAA Privacy Rule requires VHA to execute compliant BAAs with persons or entities that create, receive, maintain, or transmit VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI in order to perform certain activities, functions or services to, for, or on behalf of VHA. There may be other VA components or staff offices which also provide certain services and support to VHA and must receive PHI in order to do so. If these components award contracts or enter into other agreements, purchase/delivery orders, modifications and issue governmentwide purchase card transactions to help in the delivery of these services to VHA, they will also fall within the requirement to obtain a satisfactory assurance from these contractors by executing a BAA.

(B) *BAA requirement flow down to subcontractors.* A prime Contractor required to execute a BAA shall also obtain a satisfactory assurance, in the form of a BAA, that any of its subcontractors who will also create, receive, maintain, or transmit VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI will comply with HIPAA requirements to the same degree as the Contractor. Contractors employing a subcontractor who creates, receives, maintains, or transmits VHA PHI or that will store, generate, access, exchange, process, or utilize such VHA PHI under a contract or

agreement is required to execute a BAA with each of its subcontractors which also obligates the subcontractor (i.e., also a business associate) to provide the same protections and safeguards and agree to the same disclosure restrictions to VHA's PHI that is required of the Covered Entity and the prime Contractor.

(d) *Contractor operations required to be in United States.* Custom software development and outsourced operations must be located in the U.S. to the maximum extent practicable. If such services are proposed to be performed outside the continental United States, and are not otherwise disallowed by other Federal law, regulations or policy, or other VA policy or other mandates as stated in the contract, specifications, statement of work or performance work statement (including applicable Business Associate Agreements), the Contractor/subcontractor must state in its proposal where all non-U.S. services are provided. At a minimum, the Contractor/subcontractor must include a detailed Information Technology Security Plan, for review and approval by the Contracting Officer, specifically to address mitigation of the resulting problems of communication, control, and data protection.

(e) *Contractor/subcontractor employee reassignment and termination notification.* Contractors and subcontractors shall provide written notification to the Contracting Officer and Contracting Officer's Representative (COR) immediately, and not later than four (4) hours, when an employee working on a VA information system or with access to VA information is reassigned or leaves the Contractor or subcontractor's employment on the cognizant VA contract. The Contracting Officer and COR must also be notified immediately by the Contractor or subcontractor prior to an unfriendly termination.

(f) *VA information custodial requirements.* (1) *Release, publication, and use of data.* Information made available to a Contractor or subcontractor by VA for the performance or administration of a contract or information developed by the Contractor/subcontractor in performance or administration of a contract shall be used only for the stated contract purpose and shall not be used in any other way without VA's prior written approval. This clause expressly limits the Contractor's/subcontractor's rights to use data as described in Rights in Data—General, [FAR 52.227-14\(d\)](#).

(2) *Media sanitization.* VA information shall not be co-mingled with any other data on the Contractors/subcontractor's information systems or media storage systems in order to ensure federal and VA requirements related to data protection, information segregation, classification requirements, and media sanitization can be met (see [VA Directive 6500](#), VA Cybersecurity Program). VA reserves the right to conduct scheduled or unscheduled on-site inspections, assessments, or audits of Contractor and subcontractor IT resources, information systems and assets to ensure data security and privacy controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with Federal and VA requirements. The Contractor and subcontractor will provide all necessary access and support to VA and/or GAO staff during periodic control assessments or audits.

(3) *Data retention, destruction, and contractor self-certification.* The Contractor and its subcontractors are responsible for collecting and destroying any VA data provided, created, or stored under the terms of this contract, to a point where VA data or materials are no longer readable or reconstructable to any degree, in accordance with [VA Directive 6371](#), Destruction of Temporary Paper Records, or subsequent issue. Prior to termination or completion of this contract, the Contractor/subcontractor must provide its plan for destruction of all VA data in its possession according to [VA Directive 6500](#), and VA Cybersecurity Program, including compliance with National Institute of Standards and Technology (NIST) 800-88, Guidelines for Media Sanitization, for the purposes of

media sanitization on all IT equipment. The Contractor must certify in writing to the Contracting Officer within 30 days of termination of the contract that the data destruction requirements in this paragraph have been met.

(4) *Return of VA data and information.* When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to the VA (as stipulated by the Contracting Officer or the COR) or the Contractor/subcontractor must hold it until otherwise directed. Items returned will be hand carried, securely mailed, emailed, or securely electronically transmitted to the Contracting Officer or to the address as provided in the contract or by the assigned COR, and/or accompanying BAA. Depending on the method of return, Contractor/subcontractor must store, transport, or transmit VA sensitive information, when permitted by the contract using VA-approved encryption tools that are, at a minimum, validated under Federal Information Processing Standards (FIPS) 140-3 (or its successor). If mailed, Contractor/subcontractor must send via a trackable method (USPS, UPS, Federal Express, etc.) and immediately provide the Contracting Officer with the tracking information. No information, data, documentary material, records or equipment will be destroyed unless done in accordance with the terms of this contract and the VHA Records Control Schedule 10-1.

(5) *Use of VA data and information.* The Contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if the National NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies for this contract as a result of any updates, if required.

(6) *Copying VA data or information.* The Contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the contract or to preserve electronic information stored on Contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the Contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

(7) *Violation of information custodial requirements.* If VA determines that the Contractor has violated any of VA's information confidentiality, privacy, or security provisions, it shall be sufficient grounds for VA to withhold payment to the Contractor or third-party or terminate the contract for default in accordance with [FAR part 49](#) or terminate for cause in accordance with [FAR 12.403](#).

(8) *Encryption.* The Contractor/subcontractor must store, transport, or transmit VA sensitive information, when permitted by the contract, using cryptography, and VA-approved encryption tools that are, at a minimum, validated under FIPS 140-3 (or its successor).

(9) *Firewall and web services security controls.* The Contractor/subcontractor's firewall and web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

(10) *Disclosure of VA data and information.* Except for uses and disclosures of VA information authorized in a cognizant contract for performance of the contract, the

Contractor/subcontractor may use and disclose VA information only in two other situations: (i) subject to paragraph (f)(10) of this section, in response to a court order from a court of competent jurisdiction, or (ii) with VA's prior written approval. The Contractor/subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the Contracting Officer for response. If the Contractor/subcontractor is in receipt of a court order or other request or believes it has a legal requirement to disclose VA information, that Contractor/subcontractor shall immediately refer such court order or other request to the Contracting Officer for response. If the Contractor or subcontractor discloses information on behalf of VHA, the Contractor and/or subcontractor must maintain an accounting of disclosures. Accounting of Disclosures documentation maintained by the Contractor/subcontractor will include the name of the individual to whom the information pertains, the date of each disclosure, the nature or description of the information disclosed, a brief statement of the purpose of each disclosure or, in lieu of such statement, a copy of a written request for a disclosure, and the name and address of the person or agency to whom the disclosure was made. The Contractor/subcontractor will provide its Accounting of Disclosures upon request and within 15 calendar

days to the assigned COR and Privacy Officer. Accounting of disclosures should be provided electronically via encrypted email to the COR and designated VA facility Privacy Officer as provided in the contract, BAA, or by the Contracting Officer. If providing the Accounting of Disclosures electronically cannot be done securely, the Contractor/subcontractor will provide copies via trackable methods (UPS, USPS, Federal Express, etc.) immediately, providing the designated COR and Privacy Officer with the tracking information.

(11) Compliance with privacy statutes and applicable regulations. The Contractor/subcontractor shall not disclose VA information protected by any of VA's privacy statutes or applicable regulations including but not limited to: the Privacy Act of 1974, [38 U.S.C. 5701](#), confidential nature of claims, [38 U.S.C. 5705](#), confidentiality of medical quality assurance records and/or [38 U.S.C. 7332](#), confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus or the HIPAA Privacy Rule. If the Contractor/subcontractor is in receipt of a court order or other requests for VA information or has questions if it can disclose information protected under the above-mentioned confidentiality statutes because it is required by law, that Contractor/subcontractor shall immediately refer such court order or other request to the Contracting Officer for response.

(g) *Report of known or suspected security/privacy incident.* The Contractor, subcontractor, third-party affiliate or business associate, and its employees shall notify VA immediately via the Contracting Officer and the COR or within one (1) hour of an incident which is an occurrence (including the discovery or disclosure of successful exploits of system vulnerability) that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or the availability of its data and operations, or of its information or information system(s); or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies. The initial notification may first be made verbally but must be followed up in writing within one (1) hour. See VA Data Breach Response Service at https://www.oprm.va.gov/dbrs/about_dbrs.aspx. Report all actual or suspected security/privacy incidents and report the information to the Contracting Officer and the

COR as identified in the contract or as directed in the contract, within one hour of discovery or suspicion.

(1) Such issues shall be remediated as quickly as is practical, but in no event longer than one day. The Contractor shall notify the Contracting Officer in writing.

(2) When the security fixes involve installing third party patched (e.g., Microsoft OS patches or Adobe Acrobat), the Contractor will provide written notice to VA that the patch has been validated as not affecting the systems within 10 working days. When the Contractor is responsible for operations or maintenance of the systems, they shall apply the security fixes within one day.

(3) All other vulnerabilities shall be remediated in a timely manner based on risk, but within 60 days of discovery or disclosure. Contractors shall notify the Contracting Officer, and COR within 2 business days after remediation of the identified vulnerability. Exceptions to this paragraph (e.g., for the convenience of VA) must be requested by the Contractor through the COR and shall only be granted with approval of the Contracting Officer and the VA Assistant Secretary for Office of Information and Technology. These exceptions will be tracked by the Contractor in concert with the Government in accordance with [VA Directive 6500](#) and related VA Handbooks.

(h) *Security and privacy incident investigation.* (1) The term "privacy incident" means the unauthorized disclosure or use of VA information protected under a confidentiality statute or regulation.

(2) The term "security incident" means an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information systems; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable policies. The Contractor/subcontractor shall immediately notify the Contracting Officer and COR for the contract of any known or suspected security or privacy incident, or any other unauthorized disclosure of sensitive information, including that contained in system(s) to which the Contractor/subcontractor has access.

(3) To the extent known by the Contractor/subcontractor, the Contractor/subcontractor's notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the Contractor/subcontractor considers relevant.

(4) With respect to unsecured PHI, the Business Associate is deemed to have discovered a security incident as defined above when the Business Associate either knew, or by exercising reasonable diligence should have been known to an employee of the Business Associate. Upon discovery, the Business Associate must notify VHA of the security incident immediately within one hour of discovery or suspicion as agreed to in the BAA.

(5) In instances of theft or break-in or other criminal activity, the Contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and the VA Office of Security and Law Enforcement. The Contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

(i) *Data breach notification requirements.* (1) This contract may require access to sensitive personal information. If so, the Contractor is liable to VA for liquidated damages in the event of a data breach involving any VA sensitive personal information the Contractor/Subcontractor processes or maintains under the contract as set forth in clause [852.211-76](#), Liquidated Damages—Reimbursement for Data Breach Costs.

(2) The Contractor/subcontractor shall provide notice to VA of a privacy or security incident as set forth in the Security and Privacy Incident Investigation section of this clause. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. The Contractor shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.

(3) The Contractor/subcontractor shall fully cooperate with VA or any Government agency conducting an analysis regarding any notice of a data breach or potential data breach or security incident which may require the Contractor to provide information to the Government or third-party performing a risk analysis for VA, and shall address all relevant information concerning the data breach, including the following:

- (i) Nature of the event (loss, theft, unauthorized access).
- (ii) Description of the event, including—
 - (A) Date of occurrence;
 - (B) Date of incident detection;
 - (C) Data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code.
 - (D) Number of individuals affected or potentially affected.
 - (E) Names of individuals or groups affected or potentially affected.
 - (F) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text.
 - (G) Amount of time the data has been out of VA control.
 - (H) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons).
 - (I) Known misuses of data containing sensitive personal information, if any.
 - (J) Assessment of the potential harm to the affected individuals.
 - (K) Data breach analysis as outlined in 6500.2 Handbook, Management of Breaches Involving Sensitive Personal Information, as appropriate.
 - (L) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.
 - (M) Steps taken in response to mitigate or prevent a repetition of the incident.

(j) *Training.* (1) All Contractor employees and subcontractor employees requiring access to VA information or VA information systems shall complete the following before being granted access to VA information and its systems:

(i) On an annual basis, successfully complete the VA Privacy and Information Security Awareness and VA Information Security Rules of Behavior training.

(ii) On an annual basis, sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the VA Information Security Rules of Behavior for Organizational Users, relating to access to VA information and information systems.

(iii) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access.

(2) The Contractor shall provide to the Contracting Officer and/or the COR a copy of the training certificates and affirmation that VA Information Security Rules of Behavior for Organizational Users signed by each applicable employee have been completed and submitted within five (5) days of the initiation of the contract and annually thereafter, as required.

(3) Failure to complete the mandatory annual training and acknowledgement of the VA Information Security Rules of Behavior, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

(k) *Subcontract flow down.* The Contractor shall include the substance of this clause, including this paragraph (k), in subcontracts, third-party agreements, and BAAs, of any amount and in which subcontractor employees, third-party servicers/employees, and business associates will perform functions where they will have access to VA information (including VA sensitive information, i.e., sensitive personal information and protected health information), information systems, information technology (IT) or providing and accessing information technology-related contract services, support services, and related resources (see [VAAR 802.101](#) definition of information technology-related contracts).

(End of clause)

C.3 VAAR 852.211-76 LIQUIDATED DAMAGES—REIMBURSEMENT FOR DATA BREACH COSTS (FEB 2023)

(a) *Definition.* As used in this clause, “contract” means any contract, agreement, order or other instrument and encompasses the definition set forth in [FAR 2.101](#).

(b) *Non-disclosure requirements.* As a condition of performance under a contract, order, agreement, or other instrument that requires access to sensitive personal information as defined in [VAAR 802.101](#), the following is expressly required—

(1) The Contractor, subcontractor, their employees or business associates shall not, directly or through an affiliate or employee of the Contractor, subcontractor, or business associate, disclose sensitive personal information to any other person unless the disclosure is lawful and is expressly permitted under the contract; and

(2) The Contractor, subcontractor, their employees or business associates shall immediately notify the Contracting Officer and the Contracting Officer’s Representative (COR) of any security incident that occurs involving sensitive personal information.

(c) *Liquidated damages.* If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of \$37.50 per affected individual in order to cover costs related to the notification, data breach analysis and credit monitoring.

In the event the Contractor provides payment of actual damages in an amount determined to be adequate by the Contracting Officer, the Contracting Officer may forgo collection of liquidated damages.

(d) *Purpose of liquidated damages.* Based on the results from VA’s determination that there was a data breach caused by Contractor’s or any of its agents’ failure to protect or otherwise engaging in conduct to cause a data breach of VA sensitive personal

information, and as directed by the Contracting Officer, the Contractor shall be responsible for paying to the VA liquidated damages in the amount of \$37.50 per affected individual to cover the cost of the following:

- (1) Notification related costs.
- (2) Credit monitoring reports.
- (3) Data breach analysis and impact.
- (4) Fraud alerts.
- (5) Identity theft insurance.

(e) Relationship to termination clause, if applicable. If the Government terminates this contract, purchase order, or agreement, in whole or in part under clause [52.249-8](#), Default—Fixed-Price Supply and Service, or any other related FAR or VAAR clause included in the contract, in addition to the required liquidated damages for data breach-related expenses specified in paragraph (c) above, the Contractor is liable for excess costs for those supplies and services for repurchase as may be required under the Termination clause.

(End of clause)

C.4 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING— CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see [FAR 2.101](#) definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows: *[Contracting Officer check the appropriate box below based on the predominant NAICS code assigned to the instant acquisition as set forth in [FAR 19.102](#).]*

(i) ☒ **Services.** In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in [852.219-73](#) or certified VOSBs listed in the SBA certification database as set forth in [852.219-74](#). Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ **General construction.** In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in [852.219-73](#) or certified VOSBs listed in the SBA certification database as set forth in [852.219-74](#). Any work that a similarly situated certified SDBOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) [] Special trade construction contractors. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in [852.219-73](#) or certified VOSBs listed in the SBA certification database as set forth in [852.219-74](#). Any work that a similarly situated certified SDBOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2)The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

(i) Referral to the VA Suspension and Debarment Committee;

(ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and

(iii) Prosecution for violating 18 U.S.C. 1001.

(b)The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c)The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d)Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification:

I hereby certify that if awarded the contract, [*insert name of offeror*] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [*insert name of offeror*].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of clause)

C.5 VAAR 852.239-76 INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY (FEB 2023)

(a) All information and communication technology (ICT) (formerly referred to as electronic and information technology (EIT)) supplies, information, documentation and services support developed, acquired, maintained or delivered under this contract or order must comply with the “Architectural and Transportation Barriers Compliance Board Electronic and Information Technology (EIT) Accessibility Standards” (see 36 CFR part 1194). Information about Section 508 is available at <http://www.section508.va.gov/>.

(b) The Section 508 accessibility standards applicable to this contract or order are identified in the specification, statement of work, or performance work statement. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(c) The Section 508 accessibility standards applicable to this contract are: ADDENDUM A – ADDITIONAL VA REQUIREMENTS, CONSOLIDATED of Performance Work Statement.

(d) In the event of a modification(s) to this contract or order, which adds new EIT supplies or services or revises the type of, or specifications for, supplies or services, the Contracting Officer may require that the Contractor submit a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(e) If this is an Indefinite-Delivery type contract, a Blanket Purchase Agreement or a Basic Ordering Agreement, the task/delivery order requests that include ICT supplies or services will define the specifications and accessibility standards for the order. In those cases, the Contractor may be required to provide a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the provided documentation, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(End of clause)

C.6 ARTIFICIAL INTELLIGENCE IN VA CONTRACTS

For purposes of this clause, AI is defined as set forth by VA and Section 238(g) of the National Defense Authorization Act for Fiscal Year 2019 to include:

1. Any artificial system that performs tasks under varying and unpredictable circumstances without significant human oversight, or that can learn from experience and improve performance when exposed to data sets.
2. An artificial system developed in computer software, physical hardware, or other context that solves tasks requiring human-like perception, cognition, planning, learning, communication, or physical action.
3. An artificial system designed to think or act like a human, including cognitive architectures and neural networks.
4. A set of techniques, including machine learning (ML), that is designed to approximate a cognitive task.
5. An artificial system designed to act rationally, including an intelligent software agent or embodied robot that achieves goals using perception, planning, reasoning, learning, communicating, decision making, and acting.

The Contractor shall provide a list of all AI it will be proposing, creating, delivering, and/or using as part of contract performance, for VA approval. The list of AI shall be provided directly to the VA PM, COR, and CO at least annually but also at the following times: upon proposal submission, contract award, the COR's request, and upon the Contractor's proposed use of new AI tools not contemplated at the time of last reporting. AI shall not be used in performance of the contract without the written approval and authorization of the CO. The Contractor shall also report all AI intended for use in contract performance for VA's inclusion in the VA AI Use Case Inventory. The Contractor shall actively engage in AI discovery, assessment, and compliance activities undertaken by VA.

Once the Contractor has obtained CO authorization to use specific AI in contract performance, the Contractor shall provide the COR a signed Statement of Attestation prior to AI implementation. All AI for delivery and/or use in performance of the contract shall adhere to the *VA Trustworthy AI Framework*, available at <https://department.va.gov/ai/trustworthy/>. The Statement of Attestation shall include, but

is not limited to, a description of all controls, processes, technologies, and mechanisms utilized to satisfy VA's six (6) AI Principles: Purposeful, Effective and Safe, Secure and Private, Fair and Equitable, Transparent and Explainable, and Accountable and Monitored. The Statement of Attestation shall also certify that the Contractor owns or possesses all legally required rights, copyright, and licenses to use the specified AI. The Statement of Attestation shall clearly state that the use of the AI by VA personnel in performance of the contract:

1. Does not and will not infringe upon any intellectual property rights of any kind.
2. Does not violate any intellectual property rights of any kind.
3. Does not violate any other third-party rights of any kind.

The Statement of Attestation shall also affirm that there have not been any persisting or existing material errors, defects, failures, or interruptions in AI performance of its intended purpose. Additionally, the Statement of Attestation shall include the Contractor's endorsement that the AI has materially performed in accordance with its specifications and intended purpose. Lastly, the Statement of Attestation shall be updated and resubmitted, at a minimum, annually, prior to the exercise of any contract option periods. The Statement of Attestation shall be deemed separate from, and in addition to, the Contractor's reporting requirements relative to the use of AI. The Statement of Attestation is a material term of the contract; accordingly, failure to provide the Statement of Attestation, to include all requirements, may be deemed a breach of contract and thus, cause for termination.

Data Ownership and Use. VA data ("Data") shall include data collected, used, processed, stored, or generated as the result of the use of AI. VA data is and shall remain the sole and exclusive property of VA. Contractor is provided a limited, non-exclusive license to access and use Data solely for performing its obligations under the Contract. The Contractor shall: (a) keep and maintain VA data in strict confidence and as further described in this Contract and applicable law to avoid unauthorized access, use, disclosure, or loss; (b) not use, sell, rent, transfer, distribute, or otherwise disclose or make available VA Data for Contractor's own purposes or for the benefit of anyone other than VA without the CO's prior written consent; and (c) not store, use, and transmit VA Data outside of the United States. This applies to both identified and de-identified data.

The Contractor (or Subcontractor at any tier, including affiliates, third-party affiliates, and any other non-VA entities) shall not sell, monetize, release, share, reuse, transfer, or misuse any VA data, to include any models, training data, testing data, patterns, documentation, implementation artifacts, runtime artifacts, or any other digital artifacts, partially or as a whole, derived from AI or machine learning (ML) without the express written consent and approval from the CO.

The Contractor is prohibited from using non-public VA data, including Veteran data, and outputted results to train publicly or commercially available AI algorithms, fine-tune, or otherwise develop AI or ML models for reuse, transfer, or commercial purposes, without the express written authorization from the CO specifying VA data that may be used along with the acceptable scope of such usage. Contractor agrees that any AI models, weights, or derivative artifacts trained, or fine-tuned, on VA non-public data, if

authorized by VA, may not be commercialized or used for the benefit of any third party without prior written approval by the CO and must be conducted within a VA authorized environment that has obtained an Authority to Operate

The Contractor shall indemnify VA and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of VA use of any AI products and/or services under the contract.

The Contractor shall maintain commercially reasonable insurance coverage for claims or losses pertaining to the AI products or services being used in performance of the contract.

The Contractor shall maintain commercially reasonable and industry standard conforming security safeguards and controls, including proper access controls for the AI. The Contractor agrees the VA Contracting Officer has the unilateral right to require deactivation of any AI for any reason and without notice.

Any development and/or creation of AI, including any AI derivatives, during performance of this contract, is subject to applicable Intellectual Property and data rights clauses under the Federal Acquisition Regulation (FAR) including, FAR 52.227-14. The VA retains the unlimited right to reuse, share, and/or redeploy AI code and AI models procured under this contract. License rights in any Commercial Computer Software shall be governed by this contract.

This clause applies to both existing and new uses of AI, both stand-alone AI and AI embedded within other systems or applications, AI developed both by VA or by third parties on behalf of agencies for the fulfillment of specific VA missions, including relevant data inputs used to train AI and outputs used in support of decision making, and VA procurement of AI applications.

This clause does not apply to AI embedded within common commercial products, such as word processors or map navigation systems. The Contractor shall inform the VA Contracting Officer in writing if it believes the AI it intends to use during contract performance is not covered by this clause. The burden to demonstrate the AI is a common commercial product shall rest solely with the Contractor.

Non-compliance with the terms above, or loss of sensitive VA medical records information resulting from AI use (whether accidental or intentional), may result in Contractor liability to VA for any and all rights and remedies provided by law, including but not limited to contract termination, liquidated damages, and referral to VA's Suspension and Debarment Committee.

The Contractor shall include the substance of this clause in all subcontracts, including Subcontractors at any tier, affiliates, third-party affiliates, and any other non-VA entities.

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

Attachment A - Multi-Functional Devices and Locations

Attachment B - MFD Specifications

SECTION E - SOLICITATION PROVISIONS**E.1 FAR 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul: <http://www.acquisition.gov/far/index.html>

VAAR: <http://www.va.gov/oal/library/vaar/>

FAR Number	Title	Date
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT.	NOV 2025 (DEVIATION)
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025 (DEVIATION)
52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV 2025 (DEVIATION)
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	SEP 2025 (DEVIATION)
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	SEP 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	SEP 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE.	FEB 2023

E.2 FAR 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (NOV 2025)(DEVIATION)

(a) *Definitions.* As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a

subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation*. The Offeror represents that-

- (1) It ☐ is, ☐ is not an inverted domestic corporation; and
- (2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

E.3 FAR 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (NOV 2025)(DEVIATION)

a)

(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the

Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

E.4 FAR 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (NOV 2025)(DEVIATION)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

E.5 FAR 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (NOV 2025 DEVIATION)

- (a) The Government will not enter into a contract with any corporation that—
 - (1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
 - (2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
- (b) The Offeror represents that—
 - (1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
 - (2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

E.6 FAR 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm-Fixed Price contract resulting from this solicitation.

(End of provision)

E.7 FAR 52.233-2 SERVICE OF PROTEST (NOV 2025)(DEVIATION)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

Electronic Address: Contracting Officer John Vardouniotis - ioannis.vardouniotis@va.gov

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

E.8 BASIS OF AWARD

Award will be made to the lowest priced, responsive, responsible respondent whose quote conforms with the Government's requirements as set forth in Section B.4 Schedule of Supplies/Services and Section B.5 Performance Work Statement. The Government will evaluate offers for award purposes by adding the total price for all items in the Schedule of Supplies/Services. The total evaluated price will be that sum. Quote must be in the format of the Schedule of Supplies/Services set forth at Section B.4. All prices shall contain no more than two decimal places. For each priced line item, ensure the "Unit price" column multiplied by the "Quantity" column equals the "Total Price" column.

The quote must be submitted on an "All or None" basis. Any deviation from the Government's minimum terms and conditions set forth in this solicitation may result in your offer being deemed by the Government to be non-conforming to the requirements and excluded from consideration for award.

E.9 QUOTE SUBMISSION

Quotes shall be submitted electronically under the subject Request for Quotation (RFQ) number, no later than the date and time indicated in the Standard Form 1449, Block 8 via email to Contract Specialist Angela Key, angela.key@va.gov, and Contracting Officer John Vardouniotis, ioannis.vardouniotis@va.gov with the subject line as the Solicitation Number 36C10B26Q0331. Please note that file size is limited to less than 5MB. If your file exceeds the size limit, please send multiple emails. Your response must be received by the closing date indicated for the quote to be considered timely and considered for award of an order. The use of hyperlinks or embedded attachments in quotes is prohibited. All questions shall be directed to Contract Specialist Angela Key, Angela.Key@va.gov and Contracting Officer John Vardouniotis, ioannis.vardouniotis@va.gov prior to closing date and time specified in the RFQ.

Accordingly, the Respondent shall ensure that any and all costs associated with the Respondent's proposed application(s), software products, software solution, and/or system, shall be included in the Respondent's proposed firm-fixed price, and shall serve as the Respondent's firm-fixed price for the life of any resulting contract. No additional

costs or fees relative to the Respondent's proposed application(s), software products, software solution, and/or system including, but not limited to, licensing costs and any associated licensing maintenance required for the development, delivery, integration, operation, and/or maintenance of the Respondent's proposed solution will be allowed, accepted.

Offerors shall meet all the requirements listed in the Section B.4 Schedule of Supplies/Deliverables and Section B.5, Performance Work Statement. Each requirement shall be outlined in the quote, to include a description of the items being offered in sufficient detail to evaluate conformance with the requirements in the RFQ. No assumptions of compatibility will be made on the part of VA. Failure to list all requirements in their entirety in an Offeror's quote will result in a noncompliant quote. You are hereby advised that any Pricing Assumptions which deviate from the Government's requirements or material terms and conditions established by the RFQ, may render your proposal unacceptable, and thus ineligible for award. If you have questions reach out to the Contract Specialist or Contracting Officer listed.

Additionally, Respondents shall:

1. Complete Section B.4 and submit with its quote. Respondent is cautioned that alterations to the line items as specified will not be accepted and may render quote unacceptable.
2. Provide a signed copy of the certification required by VAAR 852.219-75 (Jan 2023) (DEVIATION). See C.4.
3. Complete the fill-ins and provide FAR provisions 52.209-2, 52.209-5, 52.209-7, and 52.209-11 with submission.
4. Provide with its quote a Certification Letter from the OEM for any and all proposed products listed in the Section B, Schedule of Supplies/Services certifying that both the Respondent and any pass-through vendors, are authorized to sell and provide the proposed product(s) as of the date of the submission of the quote/proposal. The Letter(s) shall be provided on official letterhead, as required by the OEM(s), to support authorized product sale and pricing for the products proposed. Failure to include the requisite Letter(s) may render the Respondent's quote Unacceptable and thus, ineligible for award.
5. Complete, sign and provide with submission the following self-certifications (see below):
 - a. Artificial Intelligence Certification
 - b. Sustainable Products

ARTIFICIAL INTELLIGENCE EFFORTS

Response Instructions: Offerors shall, if Artificial Intelligence (AI) is part of the Contractor system/solution, provide the below self-certification with their quote/proposal affirming that the identified/proposed AI System/LLM complies with the two Unbiased AI Principles, Truth-seeking and Ideological Neutrality, as required by the Office of Management and Budget (OMB) Memorandum M-26-04, "Increasing Public Trust in Artificial Intelligence Through Unbiased AI Principles", or indicate otherwise that a self-certification is Not Applicable. Additionally, Offerors shall self-certify that the content requested within the AI System/LLM Development and Operation Documentation, as identified in OMB Memorandum M-26-04 as Transparency Documentation, will be provided for its proposed AI System/LLM during the period of performance, meet the required transparency threshold and align with the two Unbiased AI Principles. Failure to include the requisite Offeror's self-certification may render the Offeror's proposal/quotation unacceptable, and therefore ineligible for award. The Government will rely on the Offeror's self-certification that its proposed AI System/LLM adheres to the Unbiased AI Principles and related requirements. VA reserves the right to request additional information if it determines that doing so is in the Government's best interest.

Certification:

☐ Not Applicable

☐ I hereby certify that the proposed AI System/LLM complies with the required Unbiased AI Principles as identified in OMB Memorandum M-26-04 and can also meet the required AI System/LLM Development and Operation Documentation requirements specified therein. I further certify that I am authorized to execute this certification on behalf of *<insert name of Offeror>*.

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Name (and version) of its proposed AI System/LLM: _____

Date: _____

Company Name and Address: _____

**SOLICITATION INSTRUCTIONS FOR INFORMATION TECHNOLOGY USING
SUSTAINABLE PRODUCTS**

Response Instructions: Offerors shall provide with its quote/proposal a self-certification that the identified/proposed sustainable product(s) as of the date of the submission of the quote/proposal meet the required Energy Star certification and/or FEMP Low Standby Power designation as required. Failure to include the requisite Offeror's self-certification may render the Offeror's proposal/quotation unacceptable and thus, ineligible for award. The Government will rely on the Offeror's self-certification that its proposed products meet the Sustainable Products requirements indicated. VA reserves the right to request additional information should VA determine it is in the Government's best interest.

Certification:

I hereby certify that all products proposed meet the required Energy Star and/or FEMP Low Standby Power certification/designation respectively. I further certify that I am authorized to execute this certification on behalf of *<insert name of Offeror>*.

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

General

Note - System updates may lag policy updates. The System for Award Management may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.